Idaho Local District Civil Rules Packet

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LOCAL DISTRICT RULES OF PROCEDURE

UNITED STATES DISTRICT COURT
DISTRICT OF IDAHO

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ANNOUNCEMENT TO ATTORNEYS AND THE PUBLIC

LOCAL RULES OF CIVIL AND CRIMINAL PRACTICE

Revised and adopted August 17, 2026

The local rules are available for public viewing at each Federal Courthouse in Idaho (Boise, Pocatello, and Coeur d'Alene).

Local rules, among other documents, are available on the court's Internet website at http://www.id.uscourts.gov/. If you do not have access to the Internet, local rules can be provided at the Federal Courthouse closest to you. You can also send your request, with a return addressed and stamped mailer, to:

Clerk, U.S. District Court
550 W Fort St.
Boise, ID 83724

We welcome your comments and suggestions. Please e-mail them to: **District Court Local Rules Committee** (local_rulesDC@id.uscourts.gov)

SCOPE OF THE RULES

(a) Title and Citation. These rules will be known as the Local Rules of Civil and Criminal Practice before the United States District Court for the District of Idaho. They may be cited as "Dist. Idaho Loc. Civ. R. ____" or "Dist. Idaho Loc. Crim. R. ____."

(b) Effective Date. These rules became effective on January 1, 2005. Any amendments to these rules become effective on the date approved by the Court.

(c) Scope of Rules. These rules must apply in all proceedings in civil actions. Rules governing proceedings before magistrate judges are incorporated herein. Additionally, the general provisions of these rules apply to criminal proceedings as set forth in Dist. Idaho Loc. Crim. R. 1.1.

(d) Relationship to Prior Rules; Actions Pending on Effective Date. These rules supersede all previous rules promulgated by this District or any judge of this Court. They must govern all applicable proceedings brought in this Court after they take effect. They also must apply to all proceedings pending at the time they take effect, except to the extent that in the opinion of the Court the application thereof would not be feasible or would work an injustice, in which event the former rules must govern.

(e) Rule of Construction and Definitions.

(1) Where no local rule governs a particular practice, assume that the local practice is consistent with the federal rules.

(2) Title 1, United States Code, Sections 1 to 5, must, as far as applicable, govern the construction of these rules.

(3) The following definitions must apply:

(A) "Court." As used in these rules, the term "Court" refers to the United States District Court for the District of Idaho, to the Board of Judges for the District of Idaho, or to a particular judge or magistrate judge of the Court before whom a proceeding is pending unless the rule expressly refers to a district judge only or to the full Court.

(B) "Clerk." As used in these rules, the term "Clerk" refers to the Clerk of Court or any deputy clerk designated by the Clerk of Court to act in the capacity of the Clerk.

Related Authority:
None

AVAILABILITY OF THE LOCAL RULES

When amendments to these rules are proposed, notice of such proposals and of the ability of the public to comment will be provided on the Court's Internet web site and may be provided in The Advocate or other periodicals published by the Idaho State Bar.

When amendments to these rules are made, notice of such amendments will be provided on the Court's Internet web site, and may be provided in The Advocate or other periodicals published by the Idaho State Bar.

Related Authority:
Fed. R. Civ. P. 83

VENUE

The Divisions of the United States District Court for the District of Idaho consist of the following counties, and are numbered and correspond with the Court's case numbers:

1. Southern Division:

Ada	Gooding
Adams	Jerome
Blaine	Lincoln
Boise	Owyhee
Camas	Payette
Canyon	Twin Falls
Elmore	Valley
Gem	Washington

2. Northern Division:

Benewah	Kootenai
Bonner	Shoshone
Boundary	

3. Central Division:

Clearwater	Lewis
Idaho	Nez Perce
Latah	

4. Eastern Division:

Bannock	Franklin
Bear Lake	Fremont
Bingham	Jefferson
Bonneville	Lemhi
Butte	Madison
Caribou	Minidoka
Cassia	Oneida
Clark	Power
Custer	Teton

Cases that have venue in one of the above divisions will be assigned by the Clerk upon the filing of the complaint or petition to the appropriate division, unless otherwise ordered by the presiding judge. Juries will be selected from the divisions in accordance with the Jury Management Plan adopted by the Court.

Related Authority:

General Order No. 158

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STATUS REPORT ON SERVICE OF PROCESS

Within thirty (30) days of the filing of the complaint, the plaintiff must file with the Court a status report regarding whether service of the summons and complaint has been effectuated or waived by each defendant and, if so, the date(s) on which each such service or waiver of service occurred. Filing such a status report does not fulfill the plaintiff's obligations to comply with the requirements of Federal Rule of Civil Procedure 4(*l*). If the plaintiff files a proof of service in accordance with Federal Rule of Civil Procedure 4(*l*) within thirty (30) days of the filing of the complaint, the plaintiff need not file the status report otherwise required under this local rule.

RELATED AUTHORITY
Fed. R. Civ. P. 4(l), 16(b)(2)

Advisory Committee Notes

Under Federal Rule of Civil Procedure 16(b)(2), "[t]he judge must issue the scheduling order as soon as practicable, but unless the Court finds good cause for delay, the judge must issue it within the earlier of 90 days after any defendant has been served with the complaint or 60 days after any defendant has appeared." Federal Rule of Civil Procedure 4(l) does not require the plaintiff to file a proof of service within a specific timeframe. Thus, for purposes of determining under Federal Rule of Civil Procedure 16(b)(2) the date "90 days after any defendant has been served with the complaint," the Court may not in every instance know if and when the plaintiff has served any defendant. The status report requirement set forth in this local rule seeks to address this issue.

ELECTRONIC CASE FILING

(a) **Official Records of the Court.** The docketing and case management system for the District of Idaho will be the judiciary's Case Management and Electronic Case Files (CM/ECF) Program. The official record of the Court consists of: (1) all documents filed electronically; (2) all documents converted to electronic format; and (3) all documents filed and not capable of conversion to electronic format.

(b) **Establishment of Electronic Case Filing Procedures.** The Clerk of Court for the United States District Court for the District of Idaho is authorized to establish and promulgate Electronic Case Filing Procedures ("ECF Procedures"), including the procedure for registration of attorneys and other authorized users, and for distribution of passwords to permit electronic filing and notice of pleadings and other papers. The Clerk may modify the ECF procedures from time to time, after conferring with the Chief Judges. The ECF Procedures will be available to the public on the Court's web site: www.id.uscourts.gov.

(c) **Scope of Electronic Filing.** Unless expressly prohibited, the filing of all documents required or permitted to be filed with the Court in connection with a civil or criminal case will be accomplished electronically as specified in the Electronic Case Filing (ECF) Procedures.

(1) Documents filed conventionally with the Court may be converted into an electronic format by the Court and in such cases, such documents will be treated for all purposes as if they had been electronically filed, except that conversion of a conventionally filed document to electronic format by the Court will not affect the original filing date and time of that document.

(2) On a case by case basis, the presiding judge may direct that copies of any documents filed electronically be sent directly to the judge's chambers in a format specified by the judge.

(d) **Court Retention of Records-Copies.** Where a document filed conventionally is converted to an electronic format by the Court, the document originally filed will be maintained as a copy only. Such copies of documents will be retained by the Court only so long as required to ensure that the information has been transferred to the Court's data base, for other Court purposes or as required by other applicable laws or rules. It is the responsibility of any party who has filed a document conventionally who desires to have the document returned by the Clerk, to specifically request and arrange for its return or the Clerk is authorized to dispose of the document after electronic conversion.

(e) **Retention of Conventionally Signed Documents.** The original of all conventionally signed documents that are electronically filed must be retained by the filing party for a period of not less than the maximum allowed time to complete any appellate process, or the time the case of which the document is a part, is closed, whichever is later. The document must be produced upon an order of the Court.

Anyone who disputes the authenticity of any signature on electronically-filed documents must file an objection to the document within ten days of receipt of the document or notice of its filing, whichever first occurs.

(f) **Eligibility**. Only a Registered Participant or an authorized employee of the Registered Participant may file documents electronically. To become a Registered Participant, or to act as an authorized employee of the Registered Participant, a person must satisfy the registration requirements established by the Court and participate in training as required by the Court unless the Clerk is satisfied that training is not necessary.

(g) **Consequences of Electronic Filings.** The electronic transmission of a document to the Court via an electronic filing system authorized by the Court and consistent with the administrative and technical requirements established by the Court, constitutes filing of the document for all purposes. The filing date and time of a document filed electronically will be the date and time the document is electronically received by the Court, which for the purposes of this Rule will be Mountain Time.

(h) **Entry of Court Issued Documents.** The Court will enter all orders, decrees, judgments and proceedings of the Court in accordance with the electronic filing procedures, which will constitute entry of the order, decree, judgment, or proceeding on the docket kept by the Clerk of Court.

(i) **Large Documents, Exhibits and Attachments.** The parties are directed to refer to the Electronic Case Filing Procedures, which may be amended from time to time.

(j) **Signatures.** The electronic filing of any document by a Registered Participant will constitute the signature of that person for all purposes provided in the Federal Rules of Civil and Criminal Procedure. For instructions regarding electronic signatures, refer to the Electronic Case Filing Procedures.

(k) **Notice and Service of Documents.** Participation by a Registered Participant in the Court's CM/ECF system by registration and receipt of a login and password from the Clerk of Court will constitute consent by that Registered Participant to the electronic service of pleadings and other papers under applicable Federal Rules of Civil, Criminal and/or Bankruptcy Procedure.

(l) **Technical Failures**. Any Registered Participant or other person who is unable to complete a filing after 5:00 p.m. Mountain Time as a result of a technical failure of the Court's CM/ECF system shall submit by email the documents intended to be filed to the law clerk assigned to the case and shall timely serve the documents on all counsel of record. The documents will be deemed filed upon the date received. They will be docketed by Court Staff as soon as practical after CM/ECF returns to normal operation.

Documents must meet all standard requirements for filing, including, but not limited to:
• Documents must be in PDF format.
• Documents must be clearly titled, with appropriate case number.
• Documents must clearly indicate all parties as appropriate.
• All pleadings, written motions, and other filings shall be dated and signed, as provided by FRCP 11, and shall be filed in accordance with the Local Rules and these ECF Procedures.

RELATED AUTHORITY
Fed. R. Civ. P. 5(e)

GENERAL FORMAT OF DOCUMENTS PRESENTED FOR FILING
ELECTRONICALLY OR, WHERE PERMITTED, IN CONVENTIONAL FORMAT

(a) All pleadings, motions, and other papers presented for filing must be in 8½ x 11 inch format, flat and unfolded, without back or cover, and must be plainly typewritten, printed, or prepared on one side of the paper only by a clearly legible duplication process, and double-spaced, except for quoted material and footnotes. Each page must be numbered consecutively. The top, bottom, and side margins must be at least one inch, and the font or typeface for all text, including footnotes, must be at least 12 point.

If pleadings are filed in paper form, it is the responsibility of the filer to ensure that the paper document can be scanned with a legible image. All pleadings must be affixed by a fastener (i.e., paper clip) and NOT staples. The court requires that such documents be submitted in black print on white paper, for maximum contrast. The Court may return filings that are not legible.

(b) The following information must appear in the upper left-hand corner of the first page of each paper presented for filing, except that in multiparty actions or proceedings, reference may be made to the signature page for the complete list of parties represented:

(1) Name of the attorney (or, if in *propria persona*, of the party)

(2) E-mail address (if available)

(3) State Bar number

(4) Office mailing address

(5) Telephone number

(6) Facsimile number (if available)

(7) Specific identification of the party represented by name and interest in the litigation (i.e., plaintiff, defendant, etc.)

Following the counsel identification and commencing four inches below the top of the first page, (except where additional space is required for identification) the following caption must appear:

UNITED STATES DISTRICT COURT

FOR THE DISTRICT OF IDAHO

Plaintiff v. Defendant	Case No.:_____ TITLE DESCRIBING THE DOCUMENT OR ACTION (i.e., Response, Motion, etc.)

(1) The title of the court;

(2) The title of the action or proceeding;

(3) The file number of the action or proceeding as it appears in CM/ECF, (i.e. 1:10-cv-043-XYZ, representing the Division (1-Southern; 2=Northern; 3=Central; 4=Eastern), year of filing, designation as civil or criminal, case number, and assigned judge's initials);

(4) The category of the action or proceeding as provided hereinafter in these rules;

(5) A title describing the pleading. If the pleading is a response to a motion, that particular motion should be reflected in the title; and

(6) Any other matter required by this rule.

(c) Documents submitted for filing, electronically or conventionally, must be accompanied by the appropriate fee, if any. In the event of a failure to comply with these rules, the Clerk may bring the failure to comply to the attention of the filing party and of the judge to whom the action or proceeding is assigned.

(d) Removing Cases from State Court:

(1) A copy of the entire state court record and the docket sheet must be provided at the time of filing the notice of removal.

(2) Civil Cover Sheet for Notices of Removal: Attorneys are required to complete a civil cover sheet when a notice of removal is filed in the District of Idaho. The form is available from the Clerk of Court. This form is used by the Clerk of Court to identify the status of all parties and attorneys. See Dist. Idaho Loc. Civ. R. 7.1, Motion Practice.

(e) Every complaint or other document initiating a civil action must be accompanied by a completed civil cover sheet, on a form available from the Clerk. This requirement is solely for administrative purposes, and matters appearing only on the civil cover sheet have no legal effect in the action.

If the complaint or other document is submitted without a completed civil cover sheet or civil cover sheet for notices of removal, the Clerk must file the complaint or the notice of removal as of the date received and promptly give notice of the omission of the respective civil cover sheet to the party filing the document. When the respective civil cover sheet has been received, the Clerk must process the complaint or notice of removal as of the original date of filing the complaint.

RELATED AUTHORITY:
Fed. R. Civ. P. 81(c)

SEALED AND IN CAMERA DOCUMENTS

This Rule applies to documents filed electronically or those filed in paper format.

(a) **General Provisions**

(1) Motion to File Under Seal. Counsel seeking to file a document under seal must file a motion to seal, along with supporting memorandum and proposed order, and file the document with the Clerk of Court. The motion must contain "MOTION TO SEAL" in bold letters in the caption of the pleading.

(2) Public Information. Unless otherwise ordered, the motion to seal will be noted in the public record of the Court. However, the filing party or the Clerk of Court will be responsible for restricting public access to the sealed documents, as ordered by the Court.

(b) **Electronic Filing of Sealed Documents**

(1) Sealed documents and sealed cases will be filed in electronic format, with access restricted to the Court and authorized staff, unless otherwise ordered by the Court.

(2) A motion to seal a document, either in its entirety or without redactions, or to seal a case, must be submitted electronically in CM/ECF. Any document to be filed under seal must be filed separately from the motion to seal. Unredacted documents filed under seal must indicate, by highlighting or other clear method, the portions of the document that have been omitted from the redacted version filed on the public docket, and prominently display the notation.

(3) Documents submitted to the Court for *in camera* review may be submitted in the same fashion as sealed documents.

(4) It is the attorney's responsibility to ensure that the documents submitted for *in camera* review are not accessible to other parties. On a case-by-case basis, the presiding judge may request that paper copies of documents submitted for *in camera* inspection be sent directly to the judge's chambers.

(5) Additional instructions for the electronic submission of sealed and *in camera* documents are contained in the Electronic Case Filing Procedures.

(c) **Documents submitted in Paper Format**

(1) Format of Documents Filed Under Seal. If the material to be sealed is presented in paper format, counsel lodging the material must submit the material in an UNSEALED 8½ x 11 inch manila envelope. The envelope must contain the title of the Court, the case caption, and case number.

(2) Absent any other Court order, sealed documents submitted in paper format will be returned to the submitting party after the case is closed and the appeal time has expired, or if appealed, after the conclusion of all appeals.

RELATED AUTHORITY
For further information, please see
Electronic Case Filing Procedures

NON-FILING OF DISCOVERY
OR
DISCLOSURES AND DISCOVERY MATERIALS
NOT TO BE FILED WITH COURT

The following discovery documents must be served upon other counsel and parties but must not be filed with the Court unless on order of the Court or for use in the proceeding:

(1) Initial Disclosures

(2) Disclosure of Expert Reports or Testimony

(3) Interrogatories and Answers to Interrogatories

(4) Requests for Production of Documents and Entry of Land and Responses

(5) Requests for Admission and Responses

(6) Notice of Taking Deposition

(7) Privilege Logs

Any certificates of service related to discovery documents must not be filed with the Clerk. The party responsible for service of the discovery material must retain the original and become the custodian. The original transcripts of all depositions upon oral examination must be retained by the party taking such deposition.

RELATED AUTHORITY

Fed R. Civ. P. 5(d)(1)

PROTECTION OF PERSONAL PRIVACY

(a) In compliance with the policy of the Judicial Conference of the United States, and the E-Government Act of 2002, and to promote electronic access to case files while also protecting personal privacy and other legitimate interests, parties must refrain from including or must partially redact, where inclusion is necessary, the following personal data identifiers from all pleadings filed with the Court, including exhibits thereto, whether filed electronically or in paper, unless otherwise ordered by the Court:

(1) **Social Security numbers.** If an individual's social security number must be included in a pleading, only the last four digits of that number should be used.

(2) **Names of minor children.** If the involvement of a minor child must be mentioned, only the initials of that child should be used.

(3) **Dates of birth.** If an individual's date of birth must be included in a pleading, only the year should be used.

(4) **Financial account numbers.** If financial account numbers are relevant, only the last four digits of these numbers should be used.

(5) **Home addresses**. Only the city and state should be identified.

(b) In compliance with the E-Government Act of 2002, a party wishing to file a document containing the personal data identifiers listed above may file an unredacted document under seal only if the party believes maintenance of the unredacted material in the Court record is critical to the case. The document must contain the following heading in the document, "SEALED DOCUMENT PURSUANT TO E-GOVERNMENT ACT OF 2002". This document will be retained by the Court as part of the record until further order of the Court. The party must also electronically file a redacted copy of this document for the official record.

(c) The redaction requirement in section (a) does not apply to in rem forfeiture actions or to the lodging of the state court record in habeas corpus cases brought under 28 U.S.C. § 2241 or § 2254, to the extent that the state court record is lodged with the Court in paper format.

(d) To comply with the Judicial Conference Policy, in addition to the items listed in section (a) above, the Court shall not provide public access to the following documents: unexecuted warrants of any kind; pretrial bail or presentence investigation reports; statement of reasons in the judgment of conviction; juvenile records, documents containing identifying information about jurors or potential jurors; financial affidavits filed in seeking representation pursuant to the Criminal Justice Act; ex parte requests for expert or investigative services at Court expense; and sealed documents.

(e) In addition to the redaction procedures outlined above, the Judicial Conference policy requires Counsel to redact the personal identifiers noted in (a), which are contained in any transcripts filed with the Court. Counsel should follow the transcript redaction procedures outlined on the Court's website at: id.uscourts.gov/CourtReporter/Transcripts.pdf

(f) Counsel and the parties are advised to exercise caution when filing documents that contain the following:

(1) Personal identification number, such as driver's license number;

(2) Medical records, treatment and diagnosis;

(3) Employment history;

(4) Individual financial information;

(5) Proprietary or trade secret information;

(6) Information regarding an individual's cooperation with the government;

(7) Information regarding the victim of any criminal activity;

(8) National security information; and

(9) Sensitive security information as described in 49 U.S.C. section 114(s).

(g) Counsel is strongly urged to share this information with all clients so that an informed decision about the inclusion of certain materials may be made. If a redacted document is filed, it is the sole responsibility of counsel and the parties to be sure that the redaction of personal identifiers is done. The Clerk will not review each pleading for redaction.

RELATED AUTHORITY

Dist. Idaho General Order No. 179
Dist. Idaho Loc. Civ. R. 5.3

REQUESTS AND ORDERS TO SHORTEN OR EXTEND TIME
OR CONTINUE TRIAL DATES

When by these rules or by notice given thereunder an act is required or allowed to be done at or within a specified time, the Court, for cause shown, may at any time, with or without motion or notice, order the period be shortened or extended. The Court's Order shortening or extending time is controlling and is not superseded by any automatically generated deadline from CM/ECF.

(a) **Requests for Time Extensions Concerning Motions.** All requests to extend briefing periods or to vacate or reschedule motion hearing dates must be in writing and state the specific reason(s) for the requested time extension. Such requests will be granted only upon a showing of good cause. A mere stipulation between the parties without providing the reason(s) for the requested time extension will be deemed insufficient. The requesting party must apprise the Court if they have previously been granted any time extensions in this particular action.

(b) **Requests for Trial Continuance.** All requests to vacate, continue, or reschedule a trial date must be in the form of a written motion, must be approved by the client, and must state the specific reason(s) for the requested continuance. A mere stipulation between the parties without providing the specific reason(s) for the requested continuance will be deemed insufficient. Client approval can be satisfied either by the client's actual signature or by the attorney certifying to the Court that the client knows about and agrees to the requested continuance. The requesting party must apprise the Court if they have previously been granted a trial date continuance in this particular action.

RELATED AUTHORITY

Fed. R. Civ. P. 6
28 U.S.C. § 473

MOTION PRACTICE

(a) General Requirements.

(1) The moving and responding parties are not required to submit an additional copy of any motion, memorandum of points and authorities, and supporting materials, including affidavits and/or declarations, unless required by the judge assigned to the matter.

(2) No memorandum of points and authorities in support of or in opposition to a motion may exceed twenty (20) pages in length, nor may a reply brief exceed ten (10) pages in length, without express leave of the Court which will be granted only under unusual circumstances. The use of small fonts and/or minimal spacing to comply with the page limitation is not acceptable.

(3) Documents submitted in response to, in support of, or in opposition to other documents must be clearly labeled with the docket number of the motion in the caption.

(4) Parties must submit proposed orders concerning routine or uncontested matters only via e-mail in accordance with ECF Procedures.

(5) Any party, either proposing or opposing a motion or other application, who does not intend to urge or oppose the same must immediately notify opposing counsel and the Clerk of Court by filing a pleading titled "Non-Opposition to Motion."

(6) The time periods specified herein and automatically generated by CM/ECF for service do not supersede, alter or amend any otherwise applicable Federal or Local Rule specifying a different time period for service or method of computing time.

(b) Requirements for Submission--Moving Party.

(1) Each motion, other than a routine or uncontested matter, must be accompanied by a separate brief, not to exceed twenty (20) pages, containing all of the reasons and points and authorities relied upon by the moving party. With motions for summary judgment under Federal Rule of Civil Procedure 56, in addition to the requirements contained in Federal Rule of Civil Procedure 56(c)(1), the moving party must file a separate statement of all material facts, not to exceed ten (10) pages, which the moving party contends are not in dispute .

(2) The moving party must serve and file with the motion affidavits required or permitted by Federal Rule of Civil Procedure 6(c), declarations submitted in accordance with 28 U.S.C. § 1746, copies of all photographs, documentary evidence and other supporting materials on which the moving party intends to rely.

(3) The moving party may submit a reply brief, not to exceed ten (10) pages, within fourteen (14) days after service upon the moving party of the responding party's memorandum of points and authorities. The reply brief, should be clearly identified as a "Reply in Support of Motion to _____[Dkt.__]."

(4) If relief is sought under any of the Federal Rules of Civil Procedure dealing with discovery practices, the party seeking or opposing relief must comply with the specific practices and procedures governing discovery motions found in Local Rules 37.1 and 37.2 and the Court's scheduling orders.

(c) Requirements for Submission--Responding Party.

(1) The responding party must serve and file a response brief, not to exceed twenty (20) pages, within twenty-one (21) days after service upon the party of the memorandum of points and authorities of the moving party. The responding party must serve and file with the response brief any affidavits, declarations submitted in accordance with 28 U.S.C. § 1746, copies of all photographs, documentary evidence, and other supporting materials on which the responding party intends to rely.

(2) In responding to a motion for summary judgment under Federal Rule of Civil Procedure 56, in addition to the requirements contained in Federal Rule of Civil Procedure 56(c)(1), the responding party must also file a separate statement, not to exceed ten (10) pages, of all material facts which the responding party contends are in dispute.

(3) The response brief, should be clearly identified as a "Response to the Motion to _____[Dkt. ____]" and must contain all of the reasons and points and authorities relied upon by the responding party.

(d) Supplemental Briefing or Authority

(1) Amendment or Supplementation of Briefing.

If a party wishes to file a sur-reply, or amend or supplement a party's brief, affidavit, declaration, or other papers in support of or in opposition to a motion, the party must file a motion requesting leave of the court. Motions made under this rule will be granted only in the discretion of the court.

(2) Notice of Supplemental Authority

If relevant and significant legal authorities come to a party's attention after the party's last brief has been filed, or after oral argument but before decision, a party may advise the court by promptly filing and serving a notice of supplemental authority setting forth the citation(s). Such authority may pre-date the motion, memorandum, or oral argument. The notice must state the reasons for the supplemental citation(s), referring either to the page(s) of the briefing or to a point argued orally. Notice of supplemental authority should be filed only when counsel could not, with due diligence, have been aware of the additional authority at the time the brief was filed. The notice may not exceed two pages and must otherwise comply with Dist. Idaho L. Civ. R. 7.1(a)(2).

(e) Determination of Motions by the Court and Scheduling for Oral Argument, if Appropriate.

(1) Hearings.

(A) If the presiding judge determines that oral argument on the motion is appropriate, the attorneys for the parties will be notified of a hearing date for oral argument on the motion and the Court will file a notice of hearing.

The attorney for the moving party is required to resolve any conflicts regarding the hearing date with opposing counsel and then contact the Court for a new hearing date if conflicts develop over an initial hearing date.

(B) If the presiding judge determines that oral argument will not be necessary, the matter will be decided on the briefs.

If the presiding judge later determines that oral argument would be of assistance, the parties will be notified by the Court.

(2) Attorneys are encouraged to communicate with the courtroom deputies regarding the status of any motion.

(3) The parties may request that the hearing be conducted telephonically or by video conference by contacting the courtroom deputy to obtain permission from the presiding judge. Video conferencing is available in Boise, Pocatello, and Coeur d'Alene.

(f) Effects of Failure to Comply with the Rules of Motion Practice.

(1) Failure by the moving party to file any documents required to be filed under this rule in a timely manner may be deemed a waiver by the moving party of the pleading or motion. Except as provided in subpart (2) below, if an adverse party fails to timely file any response documents required to be filed under this rule, such failure may be deemed to constitute a consent to the sustaining of said pleading or the granting of said motion or other application. In addition, the Court, upon motion or its own initiative, may impose sanctions in the form of reasonable expenses incurred, including attorney fees, upon the adverse party and/or counsel for failure to comply with this rule.

(2) In motions brought under Federal Rule of Civil Procedure 56, if the non-moving party fails to timely file any response documents required to be filed, such failure will not be deemed a consent to the granting of said motion by the Court. However, if a party fails to properly support an assertion of fact or fails to properly address another party's assertion of fact as required by Federal Rule of Civil Procedure 56(c) or Local Rule 7.1(b)(1) or (c)(2), the Court may consider the uncontested material facts as undisputed for purposes of consideration of the motion, and the Court may grant summary judgment if the motion and supporting materials - including the facts considered undisputed - show that the moving party is entitled to the granting of the motion.

(g) Requests to Extend Motion Briefing Period or to Vacate or Reschedule **Motion Hearing Dates. (*See* Dist. Idaho Loc. Civ. R. 6.1.)**

RELATED AUTHORITY

Fed. R. Civ. P. 5(a), 6(b) & (d), 56, 78

EX PARTE ORDERS

All applications to a judge of this Court for ex parte orders may be made by a party appearing in *propria persona* or by an attorney of this Court. All applications must be accompanied by a memorandum and/or affidavit outlining the necessity and authority for issuance of the order ex parte. When the opposing party is represented by counsel, the application must recite whether opposing counsel has been notified of the application for an ex parte order or set forth the reasons why opposing counsel has not been notified.

RELATED AUTHORITY

Fed R. Civ. P. 5, 7, 78

STIPULATIONS

Oral stipulations made in open court are binding on the parties. Written stipulations are binding on the parties when approved by the Court. The party filing the stipulation must submit a proposed order via e-mail in accordance with ECF Procedures.

Stipulations between the parties to commence discovery prior to making their initial disclosures do not have to be approved by the Court.

RELATED AUTHORITY

Fed. R. Civ. P. 7(b), 16, 29, 78

NON-CAPITAL CASE HABEAS PETITIONS (STATE CUSTODY)

(a) This rule governs the procedures for a petition for a writ of habeas corpus filed under 28 U.S.C. §§ 2241 and 2254 ("petition") in a non-capital case. These rules supplement the Rules Governing Section 2254 Cases and do not alter or supersede those rules.

(b) The petition must be presented in writing, accompanied by the filing fee or an in forma pauperis request. The Court will supply a blank copy of a habeas corpus form and instructions to a petitioner upon request.

(c) The Court will perform an initial review of a § 2241 or § 2254 petition pursuant to Rule 4 of the Rules Governing § 2254 Cases.

(d) Upon completion of the initial review of the petition, the court may summarily dismiss the petition in whole or in part; require amendment; stay the case to permit the petitioner to exhaust state court remedies; or require the respondent to file an answer, pre-answer motion, or other briefing in response to the initial review order, and to lodge necessary portions of the records with the Clerk of Court.

(e) If the Court authorizes the petition to proceed in whole or in part, the court will direct the Clerk of Court to serve the respondent with a copy of the petition and the court order.

(f) If the Court grants relief on a state prisoner's petition, the Clerk of Court must notify the respondent immediately by forwarding an electronic copy of the order granting relief to counsel for the respondent at counsel's designated ECF address.

RELATED AUTHORITY

28 U.S.C. §§ 1915, 2241-2254
Rules Governing Section 2254
Cases in U.S. District Courts

CAPITAL CASE HABEAS PETITIONS (STATE CUSTODY)

(a) **Applicability.** This rule governs the procedures for a petition for a writ of habeas corpus filed under 28 U.S.C. § 2254 ("habeas petition") that seeks relief from a final state court judgment in a capital (death penalty) case.

The presiding judge may modify application of this rule. These rules supplement the Rules Governing Section 2254 Cases and do not alter or supersede those rules.

(b) **Initiation of Proceedings.**

(1) Preliminary Steps. Before filing a habeas petition, a petitioner may take the following preliminary steps; however, none takes the place of, nor constitutes the filing of, an actual habeas petition:

(A) Application for a stay of execution;

(B) Application to proceed *in forma pauperis* with supporting affidavit, if applicable;

(C) Application for the appointment of counsel or to proceed pro se, if applicable;

(D) Statement of issues re: habeas petition including:

(i) information about whether this or any other federal court has ever issued a decision regarding the same judgment of conviction and the reasons for denial of relief;

(ii) information about when the petitioner intends to file a habeas petition;

(iii) a list of issues to be presented in the habeas petition; and

(iv) a certification that the issues outlined raise substantial questions of constitutional law, are not frivolous, and are not being raised simply for the purpose of delay.

(c) **Initial Review of Preliminary Filings by Court**. Upon receipt of preliminary filings, the Clerk of Court will immediately assign the matter to a district judge and assign it a civil case number. As soon as reasonably practicable, the district judge will review the preliminary filings. If the matter is found to be properly before the court, the court will issue an initial review order. The initial review order may (1) stay the execution for the duration of the proceedings in this court; (2) set an initial case management conference; (3) grant or deny an application to proceed in forma pauperis; (4) grant or deny an application for the appointment of counsel; and (5) set a deadline for the parties' scheduling order proposals.

However, if respondent identifies the new filing as a second or successive filing, respondent may file an answer or pre-answer motion before any initial review order is issued.

(d) **Appointment of Counsel.**

(A) Requirement of Counsel. Each capital case petitioner must be represented by counsel unless the court finds, after a hearing, that a petitioner's election to proceed pro se is knowing, intelligent, and voluntary. If the petitioner has not retained counsel, the court must appoint counsel in every case at the earliest practicable time.

(B) Qualifications of Appointed Counsel. Upon application by petitioner for appointment of counsel, the court will appoint the Capital Habeas Unit (CHU) of the Federal Defender Services of Idaho as lead counsel. Upon request of the CHU, the court will appoint an attorney from the Criminal Justice Act (CJA) Capital Habeas Panel as second counsel. In the event the CHU is unable to provide representation or for other reasons necessitating appointment of other counsel, the Court will appoint other qualified attorneys.

(e) **Notice of Stay of Execution**. Upon the granting of any stay of execution, the Clerk of Court will immediately notify the following: counsel for the petitioner; the Idaho Attorney General; the warden/custodian of the petitioner; and, when applicable, the clerks of the Idaho Supreme Court and the Ninth Circuit Court of Appeals. The Idaho Attorney General is responsible for providing the Clerk of Court with a telephone number where they or a designated deputy attorney general can be reached 24 hours a day.

(f) **Case Management Conferences**. After counsel has been appointed, the presiding judge may conduct case management conferences to discuss anticipated proceedings in the case.

(g) **CJA Budgeting.** In all cases where payment for attorney fees and investigative and expert expenses will be requested under the CJA, the petitioner's counsel must coordinate with the capital case budgeting attorney for the United States Court of Appeals for the Ninth Circuit and the district court at the beginning of the appointment for case budgeting and voucher approval.

(h) **Habeas Pleadings, Motions, and Lodging the State Court Record.** The following procedures apply:

(1) Petition for Writ of Habeas Corpus. Petitioner must file a habeas petition.

(2) State Court Record.

(A) No later than the deadline for the filing of an answer or pre-answer motion in response to the petition, the respondent must lodge with the court one copy of the following (electronic format preferred, but not required):

(i) Transcripts of the state court proceedings.

(ii) State clerk's record of the state court proceedings.

(iii) Briefs filed in all related appellate matters in the Idaho Supreme Court.

(iv) All motions, briefs and orders in any post-conviction relief proceeding.

(v) An index to all materials described in paragraphs (i) through (iv) above.

(B) If any items required to be filed in paragraphs (i) through (iv) above are not available, the respondent must so state and indicate when, if at all, such missing materials will be lodged.

(3) Pre-Answer Motion. Respondent may file a pre-answer motion for summary dismissal or partial summary dismissal addressing procedural issues.

(4) Answer. If no pre-answer motion is filed, or if some claims survive a pre-answer motion, Respondent must file an answer to the Petition.

(5) Reply. Petitioner may file a reply in support of the petition, and, if Petitioner believes any claims qualify for further record development through discovery or an evidentiary hearing, any such motion must be filed with the reply.

(6) Sur-Reply. Respondent may file a sur-reply, and, if a motion for further record development has been filed, Respondent's response must be filed with the sur-reply.

(7) Petitioner may file a reply in support of any motion for further record development.

(i) **Scheduling Order Proposals**. After counsel for Petitioner has been appointed, the parties shall confer and file a joint or separate proposed schedule of deadlines for the foregoing filings. The parties may also address any of the following:

(1) Whether the properly-exhausted claims on the merits should be decided first;

(2) Whether certain procedural defenses should be heard via a pre-answer motion;

(3) Whether, instead of filing a pre-answer motion followed by an answer, Respondent should file an omnibus answer addressing all procedural issues and the merits of all claims;

(4) Whether discovery on procedural issues is warranted;

(5) Whether the entire case should be stayed pending ongoing state proceedings; and

(6) Whether the petitioner should be required to proceed on the properly-exhausted claims while exhausting other claims in state court.

After the Court reviews the parties' proposals, it may adopt or modify a proposed schedule or hold an initial case management conference, after which a scheduling order will be issued.

(o) **Pleadings, Motions, Briefs, and Oral Argument.**

(1) Caption. Every pleading or paper filed in a capital habeas case must contain the notation "CAPITAL CASE" in bold, capital letters to the right of the case caption and directly beneath the case number.

The following is provided as an example:

UNITED STATES DISTRICT COURT

FOR THE DISTRICT OF IDAHO

JOHN DOE,

Petitioner, Case No.:_____

vs. **CAPITAL CASE**

(2) Motion Practice. Unless this rule or court order provides otherwise, motion practice must comply with the applicable local rules of the court. The parties may agree to routine changes such as requests for extensions of time or requests to file overlength briefs. If the parties so agree, they may file a stipulation to that effect, but the court may alter the parties' stipulated changes with adequate notice to the parties. Formal motions seeking extensions of time or of page limits are required only if the parties cannot agree.

(3) Briefs.

(A) Briefs in support of and in opposition to motions for discovery and motions for evidentiary hearing may be no longer than 60 pages; reply briefs may be no longer than 30 pages.

(B) Briefs in support of and in opposition to a motion for summary dismissal or partial summary dismissal based on procedural issues may be no longer than 100 pages; reply briefs may be no longer than 50 pages.

(C) Principal briefs on the merits of the claims set forth in the petition and principal briefs on a pre-answer motion to dismiss may be no longer than 200 pages; reply briefs may be no longer than 100 pages.

(D) No brief may be filed unless permitted by rule or leave of court.

(4) Oral argument. Motions and petitions will be deemed submitted, and will be determined, upon the written pleadings, briefs, and record, unless the court orders oral argument.

(p) **Court's Final Decision.** The court will issue a written decision granting or denying the petition.

(1) The Clerk of Court will immediately notify the petitioner's counsel, the Idaho Attorney General, the warden/custodian of the petitioner, and the Clerk of the Idaho Supreme Court of the court's final decision on the petition.

(2) The Clerk of Court will immediately notify the Clerk of the United States Court of Appeals for the Ninth Circuit, and if applicable, the Clerk of the United States Supreme Court, by telephone of:

(A) any final order denying or dismissing a petition without a certificate of appealability; and/or

(B) any order denying or dissolving a stay of execution.

(3) If the petition is denied and a certificate of appealability is issued, the court will grant a stay of execution that will continue in effect until the Ninth Circuit Court of Appeals acts upon the appeal or the order of stay.

(4) When a notice of appeal is filed, the Clerk of Court must immediately transmit the record to the Clerk of the United States Court of Appeals for the Ninth Circuit.

RELATED AUTHORITY

28 U.S.C. § 2254
Rules Governing Section 2254 Cases in U.S. District Courts
Idaho Appellate Rule (I.A.R.) 25(e) (2017)

MOTIONS TO AMEND OR SUPPLEMENT PLEADINGS

(a) Motions to Amend or Supplement Pleadings. The document title must describe the type of the proposed amended or supplemental pleading in the motion (i.e., motion to amend answer; motion to amend counterclaim; motion to supplement complaint). Motions made under Fed. R. Civ. P. 15(a)(2) or (d) must also include as an exhibit (1) a clean copy of the proposed amended or supplemental pleading; and (2) a version of the proposed pleading that shows -- through redlining, underlining, strikeouts, or other similarly effective methods -- all differences from the pleading that it is intended to amend or supplement.

Self-represented persons who are in custody are exempted from the exhibit requirement. All other self-represented persons may be exempted from the exhibit requirement with leave of the court.

(b) Filing of Amended or Supplemental Pleading. The granting of a motion under Rule 15(a)(2) or (d) does not constitute the filing of the amended supplemental pleading. Unless the court orders otherwise, the moving party must file and serve a complete clean copy of the amended or supplemental pleading within ten days of the order granting the motion.

RELATED AUTHORITY

Fed. R. Civ. P. 15(a)(d)

SCHEDULING CONFERENCE, LITIGATION PLAN, DISCOVERY PLAN AND ELECTRONICALLY STORED INFORMATION

(a) Scheduling Conference.

As a general rule, scheduling conferences will not be held in the following type of cases, unless otherwise ordered by the Court:

(1) A petition for habeas corpus or other proceeding to challenge a criminal conviction or sentence.

(2) An action to enforce or quash an administrative summons or subpoena.

(3) An action by the United States to recover a benefit payment.

(4) An action by the United States to collect on a student loan.

(5) A proceeding ancillary to proceedings in other courts.

(6) Petition to review a decision denying social security benefits.

(7) Farm Service Agency Foreclosure Actions.

(8) Civil cases in which a prisoner or self-represented litigant is a party.

In all other civil cases, unless otherwise ordered by the Court, a scheduling conference will be conducted. The Court, in its discretion, may use telephonic/video conferencing with the parties for this purpose. The Court will notify all parties of the date and time of the scheduling conference.

When the Clerk provides notice to the parties of the time and date of the scheduling conference, counsel will also be provided with a litigation plan form and a discovery plan form used by the trial judge who has been assigned the case. The litigation plan form also contains requests for discovery information that counsel will discuss at their Federal Rule of Civil Procedure 26(f) conference. The Court has created sample templates for the Litigation Plan and Discovery Plan, which are available on the Court's website. The Court encourages the parties to use the Court's templates unless the needs of an individual case require modification.

At least twenty-one (21) days before the time and date set for the scheduling conference, counsel must confer and discuss each of the following items contained on the litigation plan and discovery plan forms. These include, but are not necessarily limited, to the following:

(1) Discuss the requirement to make initial disclosures within fourteen (14) days of the Federal Rule of Civil Procedure 26(f) conference.

(2) Expert witness reports/testimony cutoff dates.

(3) Number and length of depositions.

(4) Electronically stored information (Dist. Idaho Loc. Civ. R. 16.1(b)).

(5) Discovery cutoff dates.

(6) Joinder of parties and amendment of pleadings cutoff date.

(7) Dispositive motions filing cutoff date.

(8) Alternative Dispute Resolution: (Dist. Idaho Loc. Civ. R. 16.4)

(A) Settlement Conferences

(B) Arbitration

(C) Mediation

(9) Status conference date, if counsel believes one will be necessary.

(10) Pretrial conference date (to be entered by the Court).

(11) Estimated length of trial.

(12) Trial date (to be entered by the Court).

After counsel have conferred on the litigation plan form, counsel must forward to the Court the litigation plan which

they have jointly stipulated to or, in the event counsel are unable to agree, their respective proposed litigation plans, within the time period prescribed by the judge conducting the scheduling conference.

After the scheduling conference, the Court will prepare and enter a scheduling order which will provide time frames and dates for the items contained on the litigation plan form. The Court will issue the scheduling order as soon as practicable, but unless the Court finds good cause for delay, the Court will issue it within the earlier of ninety (90) days after any defendant has been served with the complaint or sixty (60) days after any defendant has appeared.

(b) Electronically Stored Information.

The parties shall discuss the parameters of their anticipated e-discovery at the Federal Rule of Civil Procedure 26(f) conference, as well as at the scheduling conference. More specifically, during the Federal Rule of Civil Procedure 26(f) conference, the parties shall exchange the following information and discuss the following e-discovery issues:

(1) The names of the most likely custodians of relevant electronically stored information, as well as a brief description of each person's title and responsibilities;

(2) A list of each relevant electronic device or system that has been in place at all relevant times and a general description of each device or system including, but not limited to, the nature, scope, character, organization, and formats employed in each device or system. The parties should also discuss whether their electronically stored information is reasonably accessible. Electronically stored information that is not reasonably accessible may include information created or used by electronic media no longer in use, maintained in redundant electronic storage media, or for which retrieval otherwise involves undue burden or substantial cost;

(3) A brief description of the steps each party has taken to segregate and preserve all potentially relevant electronically stored information;

(4) The potential for conducting discovery of electronically stored information in phases as a method for reducing costs and burden;

(5) The methodology the parties shall employ to conduct an electronic search for relevant electronically stored information and any restrictions as to the scope and method of the search;

(6) The format for production (e.g., text searchable image files such as pdf or tiff) of electronically stored information,

(7) The potential for entering into an agreement under Federal Rule of Evidence 502(d) regarding the disclosure of a communication or information covered by the attorney-client privilege or work-product protection, as well as the potential for moving the Court to enter an order that incorporates any such agreement under Federal Rule of Evidence 502(d), and

(8) Any problems reasonably anticipated to arise in connection with e-discovery (e.g., email duplication).

If the parties fail to reach agreement on any of the e-discovery issues addressed in subparts (4) through (8) above prior to the scheduling conference the parties shall bring this fact to the Court's attention at the scheduling conference and discuss whether the Court's intervention on those topics is necessary.

RELATED AUTHORITY

Fed. R. Civ. P. 16, 16(f)
Dist. Idaho Loc. Civ. R. 16.4, 16.5

PRETRIAL CONFERENCES

At the scheduling conference, a time and date may be set for a pretrial conference. The Court may also conduct periodic status conferences to monitor how the case is proceeding to trial.

The assigned judge or magistrate judge may make such pretrial order or orders, at or following the pretrial conference, as may be appropriate. Such order or orders will control the subsequent action or proceeding as provided in Federal Rule of Civil Procedure 16.

RELATED AUTHORITY

Fed. R. Civ. P. 16(d),(e)

TRIAL SUBMISSIONS

(a) **Trial Submissions.** Unless otherwise ordered, the parties must, not less than thirty (30) calendar days prior to the date on which the trial is scheduled to commence, provide to the other parties and *promptly file with the Court* the following information regarding evidence that it may present at trial, other than solely for impeachment:

(1) The name and, if not previously provided, the address and telephone number of each witness, separately identifying those whom the party expects to present and those whom the party may call if the need arises;

(2) The designation of those witnesses whose testimony is expected to be presented by means of a deposition and a transcript of the pertinent portions of the deposition testimony;

(3) An appropriate identification of each document or other exhibit, including summaries of other evidence, separately identifying those which the party expects to offer and those which the party may offer if the need arises.

(b) **Trial Memorandum and Objections to Trial Submissions.** Within fourteen (14) calendar days before the scheduled trial date, each party shall serve and *promptly file with the Court* a trial memorandum, not to exceed twenty (20) pages, which should discuss the party's position, with supporting arguments and authorities, and any significant legal or evidentiary issues. The trial memorandum should contain a separate section that clearly states the objections to the other parties' trial submissions, including:

(1) Any objection to the use under Federal Rule of Civil Procedure 32(a) of a deposition designated by another party.

(2) Any objections, together with the grounds therefor, that may be made to the admissibility of materials identified as exhibits by the opposing party.

Objections not so disclosed, other than objections under Federal Rules of Evidence 402 and 403, shall be deemed waived unless excused by the Court for good cause shown.

(c) **Response to Trial Memoranda.** Within seven (7) days, a party may file a response memorandum, not to exceed ten (10) pages, to the opposing parties' trial memoranda, particularly addressing objections to trial submissions.

(d) **Ruling on Objections to Trial Submissions.** The listing of a potential objection does not constitute the making of that objection or require the Court to rule on the objection; rather, it preserves the right of the party to make the objection when, and as appropriate, during trial. However, this does not preclude any party from filing a motion in limine as to any particular item of evidence prior to trial.

(e) **Voir Dire and Jury Instructions.** In jury cases, serve and file proposed voir dire and jury instructions and form of verdict in conformance with Dist. Idaho Loc. Civ. R. 47.1 and 51.1.

(f) **Exhibit Lists.** All parties must furnish a list of their intended trial exhibits. A standard form may be obtained from the Court's website. In addition to physical and documentary exhibits, this list will include any deposition or document containing answers to interrogatories and requests for admissions to be offered or used in trial. The completed exhibit list must contain a brief description of each intended trial exhibit. To the extent possible, exhibits are to be listed in the sequence in which the parties propose to offer them. No exhibit is to be assigned a number without first contacting the Clerk. After assignment of numbers, the exhibit list is to be furnished to the opposing party or parties and three copies submitted to the Clerk. Unless electronically submitted or otherwise agreed among counsel or ordered by the Court, each party must also prepare and provide sufficient copies of their documentary exhibits to the opposing party or parties. Additionally, each party must present the Clerk with an original and two copies of their documentary trial exhibits. All copies must be presented in a notebook or bound with metal paper fasteners and tabulated for marking.

RELATED AUTHORITY

Fed. R. Civ. P. 16, 26(a)(3)

(a) Purpose and Scope.

1) Purpose. Pursuant to the findings and directives of Congress in 28 U.S.C. § 651 et seq., the primary purpose of this local rule is to provide parties to civil cases and proceedings in bankruptcy in this district with an opportunity to use Alternative Dispute Resolution (ADR) procedures. This rule is intended to improve parties' access to the dispute resolution process that best serves their needs and fits their circumstances, to reduce the financial and emotional burdens of litigation, and to enhance the Courts' ability to timely provide traditional litigation services. Through this rule, the Courts authorize the use of judicial settlement conference, mediation and arbitration.

2) Scope.

(A) Cases Pending Before a District Judge or Magistrate Judge. This local rule applies to all civil cases pending before any district judge or magistrate judge in this district.

(B) Proceedings Pending Before a Bankruptcy Judge. Under 28 U.S.C. § 651 et seq., and the Courts' inherent authority, proceedings pending before any bankruptcy judge in this district also may be afforded an opportunity to participate in judicial settlement conference, mediation and arbitration.

3) Authority of the Courts. The referral of a civil action and bankruptcy adversary proceeding to judicial settlement conference, mediation or arbitration does not divest the Court of the authority to exercise management and control of the case during such proceedings.

(b) ADR Procedures and Rules.

1) Matters subject to ADR. All civil cases are eligible for referral to ADR as provided for under this subsection. At the Rule 16 Scheduling Conference, or at any other time determined by the presiding judge, any civil case may be referred to ADR. Bankruptcy adversary proceedings and contested cases may be referred to ADR at the discretion of the bankruptcy judge.

2) Judicial Settlement Conference.

(A) Definition. A judicial settlement conference is a process in which a settlement conference judge (magistrate judge or other judge designated by the presiding judge) is made available to facilitate communication between the parties and assist them in their negotiations, e.g., by clarifying underlying interests, as they attempt to reach an agreed settlement of their dispute. Whether a settlement results from a judicial settlement conference and the nature and extent of the settlement are within the sole control of the parties.

(B) Initiation of a Judicial Settlement Conference. At any time after an action or proceeding is commenced, any party may request, or the presiding judge on his or her own initiative may order, a judicial settlement conference. As a general rule, the presiding judge assigned to the matter, or any judge previously assigned to the matter, will not conduct the judicial settlement conference.

(C) Procedure for Judicial Settlement Conference. After the initiation of the judicial settlement conference process, the settlement conference judge will issue an order governing the process and procedure utilized by that judge for the settlement conference.

(D) Attendance at a Judicial Settlement Conference. All parties and their counsel must participate in the settlement conference process fully, reasonably, and in good faith. The attorney(s) who will be primarily responsible for handling the actual trial of the matter, all parties, and insurers, if applicable, with authority to settle, must attend the session(s), unless otherwise excused by the settlement conference judge upon a showing of good cause.

(E) Report of Settlement Conference Judge. At the conclusion of a judicial settlement conference, a docket entry order in the docket will reflect only whether settlement was or was not achieved, unless the parties specifically agree otherwise.

(F) Confidentiality. None of the matters or information discussed during the settlement conference will be communicated to the presiding judge assigned to the matter, unless all parties expressly stipulate to such communications.

3) Mediation.

(A) Definition. Mediation is a process by which a neutral third party (the "mediator") appointed by the Court or agreed to by the parties to assist the parties in an attempt to reach a mutually acceptable agreement. The role of the mediator is to aid the parties in identifying the issues, reducing misunderstandings, clarifying priorities, exploring areas of compromise, generating options and finding points of agreement. Whether a settlement results from a mediation and the nature and extent of the settlement are within the sole control of the parties.

(B) Initiation of a Mediation. At any time after an action or proceeding is at issue, any party may request, or the presiding judge on his or her own initiative may order, mediation. None of the matters or information discussed during the mediation will be communicated to any judge assigned to the matter, unless all parties expressly stipulate to such communications or one of the exceptions in Federal Rule of Evidence 408(b) applies.

(C) Selection of a Mediator. The parties should select a mediator through mutual agreement or as otherwise ordered by the presiding judge.

(D) Procedures of Mediation. Once selected or appointed, the mediator will determine the place of the mediation session, the materials to be submitted in advance of the mediation or at the time of the mediation, who must attend the mediation session for the parties, and how the mediation session will be conducted. However, mediators will have no authority to order parties or counsel to take any action outside the mediation session, to compel parties to produce information, or, except as allowed by these rules, to rule on disputed matters. Mediators will be subject to sanctions if the mediator fails to assume the responsibilities provided herein.

(E) Attendance at the Mediation Session(s). All parties and their counsel must participate in the mediation process fully, reasonably, and in good faith. The attorney(s) who will be primarily responsible for handling the actual trial of the matter, and all parties, and insurers, if applicable, with authority to settle, must attend the session(s), unless otherwise excused by the mediator upon showing of good cause.

(F) Report of Mediator. Within seven (7) days following the last mediation session, the mediator will file a report with the Courts' ADR Administrator, with a copy to the parties, indicating when mediation occurred and whether the case has, in whole or in part, settled. The mediator must not report any of the substantive matters discussed during the mediation unless the parties specifically agree otherwise. Following this report, a docket entry order in the docket will reflect only whether settlement was or was no achieved, unless the parties specifically agree otherwise.

(G) Confidentiality. The mediator must abide by the confidentiality rules agreed to by the parties. Confidentiality protections of F.R.E. 408 will extend to mediations under this Rule.

(H) Impartiality. The mediator has a duty to be impartial, and has a continuing duty to advise all parties of any circumstances bearing on possible bias, prejudice or partiality.

(I) Compensation to Mediators. Mediators will be compensated at their regular fees and expenses, which will be clearly set forth in the information and materials provided to the parties by the mediator. Unless other arrangements are made among the parties or ordered by the Court, the interested parties will be responsible for a pro rata share of the mediator's fees and expenses. If a mediator is not paid, the Court, upon motion of the mediator, may order payment.

4) Arbitration.

(A) Definition. Arbitration is a process whereby an impartial third party (the "arbitrator") is hired or retained by the parties to hear and consider the evidence and testimony of the disputants and others with relevant knowledge and issues a decision on the merits of the dispute. The arbitrator makes an award on the issue(s) presented for decision. The arbitrator's award is binding or non-binding as the parties may agree in writing.

(B) Cases Eligible for Arbitration. No civil action, or proceeding in bankruptcy, will be referred to arbitration as the parties' ADR method, except upon written consent of all parties. Additionally, no matter will be referred to arbitration if the Court finds that:

(i) The action is based upon an alleged violation of a right secured by the Constitution of the United States;

(ii) Jurisdiction is based in whole or in part on 28 U.S.C. § 1343;

(iii) The relief sought includes money damages in an amount greater than $150,000.00; or

(iv) The objectives of arbitration would not be realized for any other reason.

(C) Initiation of an Arbitration. At any time after an action or proceeding is at issue, any party may request an arbitration. All parties must consent in a writing, signed by all parties and their counsel, before an arbitration will be ordered by the judge assigned to the matter.

(D) Selection of an Arbitrator. The parties may select an arbitrator with consent of the presiding judge.

(E) Procedure for Arbitration. After the initiation of arbitration, the arbitrator will issue to the parties a document setting forth the process and procedure utilized and to be followed.

(F) Award. At the conclusion of an arbitration, the arbitrator will issue to the parties a written award. The arbitrator's award is binding or non-binding as the parties may agree in writing.

(c) Selection of ADR Procedure.

1) Mandated Early ADR Selection Process.

(A) The Parties' Duty to Consider ADR, and Confer. No later than five (5) days prior to the Rule 16 scheduling conference, unless otherwise ordered, in every case to which this rule applies, the parties must meet and confer about (i) whether they might benefit from participating in some ADR process; (ii) which type of ADR process is best suited to the specific circumstances in their case; and (iii) when the most appropriate time would be for the ADR session to be held.

(B) Designation of Process. After considering the parties' submissions, the Court may order the parties, on appropriate terms and in conformity with this rule, to participate in ADR. The Court may refer the case to judicial settlement conference, mediation, arbitration or, with written consent of all parties, to an ADR procedure which, by stipulation of all parties, has been tailored to meet the specific needs of the parties and the case.

2) Referral to ADR during Pretrial Period. Notwithstanding the provisions of paragraph (c)(1) above regarding the early selection process, at any time before entry of final judgment, the Court may, on its own motion or at the request of any party, order the parties to participate in a judicial settlement conference or mediation or, with the written consent of all parties, arbitration. Presiding judges will take appropriate steps to assure that no referral to ADR results in an imposition on any party of an unfair or unreasonable economic burden.

3) Right to Secure ADR Services Outside the Programs Sponsored by the Court. Nothing in this rule precludes the parties from agreeing to seek ADR services outside the Courts' program. To the extent resources permit and consistent with this rule, parties remain free to use any form of ADR and any neutral they choose.

(d) ADR Administration.

1) ADR Administrator. The ADR Administrator is responsible for implementing, administering, overseeing and evaluating, along with the Board of Judges, the ADR program and procedures covered by this local rule. The ADR Administrator may be contacted through the Courts' website, www.id.uscourts.gov, or as follows:

U.S. District Court ADR Administrator
550 West Fort St. #400
Boise, ID 83724
(208) 334-1976 (telephone)

2) ADR Resources. The ADR Administrator maintains the information regarding the ADR process and procedures set forth in this rule.

RELATED AUTHORITY
28 U.S.C. § 651 through 658
Fed. R. Evid. 408;
Fed R. Civ. P. 16(c)(2)(I)

INFANTS AND INCOMPETENT PERSONS

(a) **Infants and Incompetent Persons.**

(1) No claim of an infant or incompetent person will be settled or compromised without leave of the Court, embodied in an order approving the stipulation of settlement.

(2) Whenever an infant or incompetent person has recovered a sum of money, whether by settlement or judgment, such money, whether collected upon execution or otherwise, shall be deposited with the Clerk, unless otherwise ordered by the Court, to abide the further order of the Court in the premises. Such money shall not be withdrawn except as hereinafter provided.

(3) Upon production of a certified copy of letters of guardianship of the property of the infant or incompetent person, or like commission, or of an order approving the compromise of a disputed claim of a minor, as contemplated by Idaho Code § 15-5-409a, issued out of any court of competent jurisdiction of the state, county, or district where the infant or incompetent person resides, an application may be made on behalf of the infant or incompetent person for an order directing the Clerk to pay over to such guardian or other named or authorized person the amount so deposited. Such application must be made either by the attorney of record of the infant or incompetent person, or on notice to such attorney.

(4) On such application, the amount of the attorney's lien on the fund, if any, must be fixed and determined by the Court, which determination will be embodied in the order directing the disposal of the fund. The Clerk shall thereupon pay out the monies as directed.

(b) **Bond of Guardian Ad Litem.** In cases in which an infant or incompetent person is represented by a next friend or by a guardian ad litem, as required by Idaho Code § 16-1614, no such next friend or guardian ad litem will receive money or other property of the infant or incompetent person until the next friend or guardian ad litem has given such security for the faithful performance of such duties as the Court prescribes. If such next friend or guardian ad litem does not desire to receive any such money or property, the same may be paid or delivered to the Clerk, or to such persons as may be directed by the judge, with like effect as if paid or delivered to the next friend or guardian ad litem, subject to payment of the Clerk's fees.

RELATED AUTHORITY

Fed. R. Civ. P. 17(c)

FORM OF CERTAIN DISCOVERY DOCUMENTS

The party answering, responding, or objecting to written interrogatories, requests for production of documents or things, or requests for admission must quote each such interrogatory or request in full immediately preceding the statement of any answer, response, or objection thereto. The parties must also number each interrogatory, request, answer, response, or objection sequentially, regardless of the number of sets of interrogatories or requests.

RELATED AUTHORITY

Fed. R. Civ. P. 26, 33, 34, 36

DISCLOSURES

There is a duty to supplement all disclosures. The disclosures will be served upon the respective parties and not filed with the Court.

For good cause shown, the Court may excuse parties from compliance with the disclosure requirements.

(a) **Initial Disclosures.** Parties are required to complete initial disclosures as set forth in Federal Rule of Civil Procedure 26(a)(1). Unless otherwise agreed to between the parties or ordered by the Court, a party may not seek discovery from any source before the parties have met and conferred as required by Federal Rule of Civil Procedure 26(d) and (f), subject to the exception for early document requests provided by Federal Rule of Civil Procedure 26(d)(2).

(b) **Disclosure of Expert Testimony.** The disclosure of expert testimony must be in conformance with Federal Rules of Civil Procedure 26(a)(2)(B) in the form of a written report prepared and signed by any witness retained or specially employed to provide expert testimony in the case or one whose duties as the party's employee regularly involve giving expert testimony.

As a general rule, the Court will set the time for the disclosure of expert testimony during the Rule 16.1 scheduling conference.

Except for good cause shown, the scope of subsequent testimony by an expert witness must be limited to those subject areas identified in the disclosure report or through other discovery such as a deposition.

RELATED AUTHORITY

Fed. R. Civ. P. 26(a)(1)-(3)
28 U.S.C. § 473

DEFINITION OF CONFER AND DISCOVERY DISPUTES

To confer means to speak directly with opposing counsel or a self-represented litigant in person, by video, or by telephone, to identify and discuss disputed issues and to make a reasonable effort to resolve the disputed issues. The sending of an electronic or voice-mail communication does not satisfy the requirement to "confer."

In cases involving pro se prisoners, written communication satisfies the "confer" requirement.

Before filing any motion relating to discovery under Federal Rules of Civil Procedure 26-37, counsel for the parties must confer, unless exempted by an applicable rule, in a good-faith effort to resolve or narrow any specific discovery issues and/or disputes to the extent possible. If areas of disagreement remain after the parties have conferred, as defined above, the parties should consult the presiding judge's webpage for next steps before filing any motion.

RELATED AUTHORITY

Fed. R. Civ. P. 26(f), 37(a)(1)

Advisory Committee Notes

This rule does not prevent or prohibit the use of written communication to resolve disputes. However, if disputes are not resolved via written communication, counsel or self-represented litigants (except pro se prisoners) must attempt to confer in person, by video, or by telephone prior to a motion to compel being filed.

Video calls are available on multiple internet applications such as Skype, Zoom, and Microsoft teams, and may be accessed via computers, tablets and cell phones.

Counsel or self-represented litigants have a duty to respond within a reasonable amount of time to a request to confer and to be reasonably available to confer.

CONTENT OF MEMORANDA IN SUPPORT OF DISCOVERY MOTIONS

The memorandum in support of a Rule 26 and 37 discovery motion must provide verbatim each disputed interrogatory, request, answer, response, or objection that underlies the motion. Generally those items should be set forth within the memorandum. If they are too numerous, however, the moving party may attach only the disputed items as an addendum to the memorandum.

The memorandum must also describe each issue in dispute and include a brief description of each party's arguments and authorities.

RELATED AUTHORITY

Fed. R. Civ. P. 26(c), 37(a)

NOTATION OF "JURY DEMAND" IN THE PLEADING

If a party elects to demand a jury trial by endorsing it on a pleading, as permitted by Federal Rule of Civil Procedure 38(b)(1), a notation must be placed on the front page of the pleading, immediately following the title of the pleading, stating "Demand For Jury Trial" or an equivalent statement. This notation will serve as a sufficient demand under Federal Rule of Civil Procedure 38(b). Failure to use this manner of noting the demand will not result in a waiver under Federal Rule of Civil Procedure 38(d).

RELATED AUTHORITY

Fed. R. Civ. P. 38(b)

OPENING STATEMENTS, CLOSING ARGUMENTS,
AND EXAMINATION OF WITNESSES

(a) **Opening Statements.** Prior to offering any evidence, counsel for the plaintiff must make a statement of the facts which counsel intends to establish in support of plaintiff's claim, unless such statement is waived with permission of the Court. Such waiver or statement must be made as a matter of record. Following the statement of plaintiff or at the opening of defendant's case, at the election of counsel for the defendant, the defendant's counsel must make a statement of facts which defendant's counsel intends to establish, unless such statement is waived with permission of the Court. Such waiver or statement must be made as a matter of record.

(b) **Arguments.** Only one attorney for each party will open and one attorney for each party will close, except with the permission of the Court; provided that if the opening attorney does not intend to close, the opening attorney must so inform the Court so that the Court may appropriately apportion the arguments between counsel.

(c) **Examination of Witnesses.** Only one attorney for each party will examine or cross-examine a witness except with the permission of the Court.

RELATED AUTHORITY

None

ASSIGNMENT OF CASES

Civil and criminal cases will be assigned by the Clerk to the respective judges of the Court by lot. If it appears to the Court that a case has been improperly assigned to a division of the Court for any reason, the Court may, in its discretion, reassign the case to the correct division without prior notice.

Death penalty and pro se cases are assigned on a rotating basis founded upon workload and relative assignment of a companion case.

RELATED AUTHORITY

28 U.S.C. § 137
Fed R. Civ. P. 40
General Order 324

See also Dist. Idaho L. Rule 3.1 (Venue)

District Local Rule Civ 41.1 (Civil) Back to Top

DISMISSAL OF ACTIONS

Any civil case in which no action of record has been taken by the parties for a period of six (6) months may, after sufficient notice as determined by the Court, be dismissed by the Court for lack of prosecution.

RELATED AUTHORITY

Fed R. Civ. P. 4(m)
Fed. R. Civ. P. 41(b)

VOIR DIRE OF JURORS

(a) The jury box must be filled before examination on voir dire. The Court will examine the jurors as to their qualifications and, if permitted, will direct the order and manner of examination by counsel. Not less than seven (7) days before trial, attorneys may submit written requests for voir dire questions.

(b) The Court, after reviewing the complexity and possible length of the case, will determine the number of trial jurors necessary. This number of jurors, not less than six (6) nor more than twelve (12), plus a number of jurors equal to the total number of peremptory challenges which are allowed by law, must be called in the first instance. These jurors constitute the initial panel. As the initial panel is called, the Clerk must assign numbers to the jurors in the order in which they are called. If any juror in the initial panel is excused for cause, an additional juror must be immediately called to fill out the initial panel. A juror called to replace a juror excused must take the number of the juror who has been excused. When the initial panel is qualified, the parties must exercise their peremptory challenges secretly and alternately, with plaintiff exercising the first challenge. When peremptory challenges have all been exercised or waived, the Court must call the names of the selected jurors having the lowest assigned numbers. These jurors must constitute the trial jury.

(c) All jurors selected will deliberate on the verdict.

RELATED AUTHORITY

Fed. R. Civ. P. 47
28 U.S.C. § 1870

SOCIAL MEDIA JUROR INQUIRIES

(a) Attorneys may use websites available to the public, including social media websites, for juror or prospective juror research, so long as:

(1) The website or information is available and accessible to the public;

(2) The attorney does not send an access request to a juror's electronic social media;

(3) No direct communication or contact occurs between the attorney and a juror or prospective juror as a result of the research, including, but not limited to Facebook "friend" requests, Twitter or Instagram "follow" requests, LinkedIn "connection" requests, or other forms of internet and social media contact;

(4) Social media research is done anonymously. For example, a search on a social media site must not disclose to the juror who is making the inquiry, and it must only seek information available and accessible to the public and not the result of an attorney's account on said social media site; and

(5) Deception is not used to gain access to any website or to obtain any information.

(b) Third parties working for the benefit of or on behalf of any attorney must comply with all the same restrictions as set forth above for attorneys.

(c) If an attorney becomes aware of a juror's or prospective juror's conduct that is criminal or fraudulent, IRPC 3.3(b) requires the attorney to take remedial measures including, if necessary, reporting the matter to the Court.

(d) If an attorney becomes aware of a juror's posting on the internet about the case in which she or he is serving, the attorney shall report the posting to the Court.

Advisory Committee Notes

Jurors will be advised during the orientation process that their backgrounds will be of interest to the litigants and that the attorneys in the case may investigate their backgrounds, including a review of internet websites and social media.

If there is not a method of conducting the internet research in a manner which prevents the juror or prospective juror from discovering who is doing the research, the research shall not be done because it would constitute an inappropriate communication. Attorneys must be familiar with the technology and internet tools they use to be able to do searches, including automatic, subscriber-notification features so as to maintain anonymity in any search.

INSTRUCTIONS TO JURY

(a) **Submission of Proposed Jury Instructions.** In the case of a jury trial, written proposed jury instructions and any request for special interrogatories and special verdict forms must be prepared and filed by counsel at least fourteen (14) days prior to the date of trial, but the Court may, in its discretion, receive additional requests during the course of the trial.

Counsel must file proposed instructions and requests for special interrogatories and/or special verdict forms with the Clerk of Court. Each proposed instruction, request for special interrogatory, and/or special verdict must be numbered, must indicate the identity of the party presenting the same, and must contain citations of authority. Individual instructions must embrace one subject only, and the principle of law so embraced in any request for instruction must not be repeated on subsequent requests. The Court may require that proposed jury instructions, requests for special interrogatories, and/or special verdict forms should also be submitted in electronic format for use by the Court.

(b) **Objections to Requested Instructions.** Requested instructions, together with any requests for special interrogatories and/or special verdicts, must be served upon the adverse party. The adverse party must, at least one (1) day prior to trial, specify objections to any of said instructions. Any objection must identify the instructions objected to by number, and specify distinctly the matter to which said adverse party objects. Objections must be accompanied by citations of authority in support thereof.

(c) **Objections to the Instructions Given by the Court.** The trial judge must fix the time, place, and procedure for making objections to the judge's charge to the jury. Objections must be made outside the presence of the jury and must be reported by the Court reporter in the transcript.

(d) **Instructions to the Jury.** The jury must be instructed by the Court, as provided in Federal Rule of Civil Procedure 51 either before or after arguments by counsel, or both, at the Court's election. The final jury instructions, as given by the Court, will be docketed and become a part of the permanent case file.

RELATED AUTHORITY

Fed. R. Civ. P. 51

TAXATION OF COSTS

(a) Costs (Other than Attorney Fees):

(1) Within fourteen (14) days after entry of a judgment, under which costs may be claimed, the prevailing party must serve and file a cost bill in the local form prescribed by the Court. No such bill may be filed before the parties have met and conferred regarding costs. Generally, the prevailing party is the one who successfully prosecutes the action or successfully defends against it, prevails on the merits of the main issue, and the one in whose favor the decision or verdict is rendered and judgment entered.

(A) Costs must be taxed in conformity with the provisions of 28 U.S.C. §§ 1821 and 1920-1924 and such other provisions of law as may be applicable and such directives as the Court may from time to time issue.

(B) The cost bill must itemize the costs claimed and be supported by a certificate of counsel pursuant to 28 U.S.C. § 1924 that the costs are correctly stated.

(2) Within fourteen (14) days after service by any party of its cost bill, any other party may serve and file specific objections to any items setting forth the grounds therefor. The burden is on the opposing party to establish that a claim is incorrectly stated, unnecessary or unreasonable.

(b) Order Taxing Costs:

(1) The Clerk will tax costs and serve copies of the cost bill upon all parties of record. The cost bill should reflect the Clerk's action as to each item contained therein.

(c) Judicial Review:

(1) Pursuant to Federal Rules of Civil Procedure 54(d), a review of the Clerk's taxation of costs may be obtained from the Court on any party's motion to retax, served and filed with the Clerk not later than seven (7) days after the costs have been taxed by the Clerk.

(2) The motion to retax must specify with particularity each item of the Clerk's taxation of costs to which objection is taken, and no others will be considered by the Court.

(3) The motion will be considered and decided by the Court upon the same papers and evidence used by the Clerk and upon such memorandum of points and authorities as the Court may require. A hearing may be scheduled as the discretion of the trial judge.

(4) The certificate of counsel required by 28 U.S.C. § 1924 and the District of Idaho Local Civil and Criminal Rules of Practice will be prima facie evidence of the facts recited therein.

RELATED AUTHORITY

Fed. R. Civ. P. 54(d)
28 U.S.C. §§ 1821, 1920-1924

AWARD OF ATTORNEY FEES

(a) Claims for attorney fees will not be treated as routine items of costs. Attorney fees will only be allowed upon an order of a judge of the Court after such fact-finding process as the judge orders.

(b) Unless a statute or a court order provides otherwise, a party claiming the right to allowance of attorney fees may file and serve a motion for such allowance within fourteen (14) days after entry of judgment. The motion must state the amount claimed and cite the legal authority relied on. The motion must be accompanied by an affidavit of counsel setting forth the following: (1) date(s), (2) service(s) rendered, (3) hourly rate, (4) hours expended, (5) a statement of attorney fee contract with the client, and (6) information, where appropriate, as to other factors which might assist the Court in determining the dollar amount of fee to be allowed. Motions for attorney fees and cost bills must be filed as separate documents.

(c) Within twenty-one (21) days after receipt of a party's motion for allowance of attorney fees, any other party may serve and file a response brief objecting to the allowance of fees or any portion thereof. The responding party must set forth specific grounds of objection.

(d) Within fourteen (14) days after receipt of a response brief, the moving party may submit a reply brief.

RELATED AUTHORITY

Fed. R. Civ. P. 54(d)(2)

JURY COST ASSESSMENT

When a civil action has been settled or otherwise disposed of in or out of Court, it is the duty of counsel to inform the Clerk by 3 p.m. of the business day immediately prior to trial. Costs may be assessed against counsel for failure to do so. In the event that failure to give notice results in the reporting of prospective jurors for service in the case, costs may include one day's fees for prospective jurors so reporting.

RELATED AUTHORITY

None

District Local Rule Civ 54.4 (Civil) Back to Top

SOCIAL SECURITY FEE MOTIONS UNDER 42 U.S.C. §§ 406(b) AND 1383(d)(2)

(a) A motion for attorney fees under 42 U.S.C. §§ 406(b) or 1383(d)(2) must be filed within thirty (30) days of counsel's receipt of the last Notice of Award necessary to calculate the total amount of retroactive benefits.

(b) The motion must be accompanied by a certificate of service attesting that the motion has been served on the claimant.

(c) The claimant and/or the defendant may file a response brief within twenty-one (21) days after receipt of the motion. Claimant's counsel may submit a reply brief within fourteen (14) days of any response brief.

Related Authority

42 U.S.C. §§ 406(b) and 1383(d)(2)

Advisory Committee Notes

The procedures set forth in this rule apply to motions for attorney fees brought under 42 U.S.C. §§ 406(b) or 1383(d)(2), which allow an attorney to request fees from a social security claimant's past-due benefits. This rule does not apply to motions for fees under the Equal Access to Justice Act, which are governed by 28 U.S.C. § 2412(d).

SATISFACTION OF JUDGMENT

Whenever the amount directed to be paid by any judgment or order, together with interest (if interest accrues) and the Clerk's statutory charges, must be paid into Court by payment to the Clerk, and such amount is paid, the Clerk must enter satisfaction of said judgment or order. The Court must enter satisfaction of any judgment or order on behalf of the United States upon the filing of a written acknowledgment of satisfaction thereof by the United States Attorney, and in other cases, upon the filing of a written acknowledgment of satisfaction made by the judgment-creditor and the judgment-creditor's attorney, and by the legal representatives or assigns of the judgment-creditor with evidence of their authority, within two (2) years after the date of entry of the judgment or order, and thereafter upon written acknowledgment by the judgment-creditor or by the judgment-creditor's legal representatives or assigns with evidence of their authority.

RELATED AUTHORITY

Fed. R. Civ. P. 54, 58, 79(a)(b)

SUPERSEDEAS BONDS

(a) **Approval, Filing, and Service.** If eligible under Dist. Idaho Loc. Civ. R. 67.1, the bond may be approved and filed by the Clerk. A copy of the bond plus notice of filing must be served on all affected parties promptly.

(b) **Objections.** The Court will determine objections to the form of the bond or sufficiency of the surety.

(c) **Execution.** Except where otherwise provided by Federal Rule of Civil Procedure 62, or order of the Court, execution may issue after fourteen (14) days from the entry of a judgment unless a supersedeas bond has been approved by the judge or the Clerk.

RELATED AUTHORITY

Fed. R. Civ. P. 62

SECURITY; PROCEEDING AGAINST SURETIES

(a) **The Judgment.** Every bond within the scope of these rules will contain the surety or sureties' consent that in case of the principal's or surety's default, upon notice of not less than fourteen (14) days, the Court may proceed summarily and render judgment against them and award execution.

(b) **Service.** Any indemnitee or party in interest who seeks the judgment provided by these rules will proceed by motion and, with respect to personal sureties and corporate sureties, will make the service provided by Federal Rule of Civil Procedure 5(b) or 31 U.S.C. § 9306, respectively.

RELATED AUTHORITY

Fed. R. Civ. P. 65.1

BONDS AND OTHER SURETIES

(a) **Bonds and Sureties.**

(1) When Required. A judge may, upon demand of any party, where authorized by law and for good cause shown, require any party to furnish security for costs which may be awarded against such party in an amount and on such items as are appropriate.

(2) Qualifications of Surety.

(A) Every bond must have as surety either: (i) a corporation authorized by the Secretary of the Treasury of the United States to act as surety on official bonds under 31 U.S.C. §§ 9301-9308; (ii) a corporation authorized to act as surety under the laws of the State of Idaho; (iii) two individual residents of the District, each of whom owns real or personal property within the District of sufficient equity value to justify twice the amount of the bond; or (iv) a cash deposit of the required amount made with the Clerk and filed with a bond signed by the principals.

(B) An individual who executes a bond as a surety pursuant to this subsection will attach an affidavit which gives the individual's full name, occupation, residence, and business addresses, and demonstrates ownership of real or personal property within this District. After excluding property exempt from execution and deducting liabilities (including those which have arisen by virtue of suretyship on other bonds or undertakings), the real or personal property must be valued at no less than twice the amount of the bond.

(3) Court Officers as Sureties. No clerk, marshal, or other employee of the Court nor any member of the bar representing a party in the particular action or proceeding, shall be accepted as surety on any bond or other undertaking in any action or proceeding in this Court. Cash deposits on bonds may be made by members of the bar on certification that the funds are the property of a specified person who has signed as surety on the bond. Upon exoneration of the bond, such monies must be returned to the owner and not to the attorney.

(4) Examination of Sureties. Any party may apply for an order requiring any opposing party to show cause why it should not be required to furnish further or different security or requiring personal sureties to justify their financial status in support of their bond.

(b) **Approval of Bonds by Attorneys and Clerk (or Judge).** All personal surety bonds must be presented to the judge for approval. When the party is represented by counsel, there must be appended thereto a certificate of the attorney for the party for whom the bond is being filed substantially in the following form:

> This bond has been examined by counsel for (plaintiff/defendant) and is recommended for approval as provided in this rule.
>
> Dated this _____ day of _____, ____.
>
> _____
>
> (attorney)

Such endorsement by the attorney will signify to the Court that said attorney has carefully examined the said financial information of the personal surety; that the attorney knows the contents thereof; that the attorney knows the purposes for which it is executed; that in the attorney's opinion the same is in due form; and that the attorney believes the affidavits of qualification to be true.

RELATED AUTHORITY

Fed. R. Civ. P. 65(c), 65.1

DEPOSITS

(a) Whenever a party seeks an order for money to be deposited by the Clerk in an interest-bearing account, the party must prepare a form of order in accord with the following.

(b) The following form of standard order must be used for the deposit of registry funds into interest-bearing accounts or the investment of such funds in an interest-bearing instrument:

> IT IS ORDERED that the Clerk of Court invest the amount of $_____ in the Court Registry Investment System ("CRIS"), which is administered by the Administrative Office of the United States Courts under 28 U.S.C. § 2045, and said funds to remain invested pending further Order of the Court.
>
> IT IS FURTHER ORDERED that the Administrative Office of the Courts is authorized and directed by this Order to deduct the investment services fee for the management of investments in the CRIS and the registry fee for maintaining accounts deposited with the Court.

RELATED AUTHORITY

Fed. R. Civ. P. 67
28 U.S.C. §§ 2041, 2042
General Order 312
Dist. Idaho Loc. Civil. R. 67.2

WITHDRAWAL OF A DEPOSIT PURSUANT TO
FEDERAL RULE OF CIVIL PROCEDURE 67

(a) **Order of the Court**

Funds may only be withdrawn upon an order of this Court. Such order must specify the amounts to be paid and the names of any person or company to whom the funds are to be paid.

(b) **Application Process**

Any person seeking withdrawal of monies, which were provided to the Court by Dist. Idaho Loc. Civ. R. 67.1 and subsequently deposited into an interest-bearing account or instrument as required, shall file a motion seeking withdrawal of the funds. In addition to the motion, a separate document providing the full social security number or tax identification number, and the mailing address of the ultimate recipient of the funds, should be emailed to the appropriate judge's proposed orders email account.

Advisory Committee Notes:

Pursuant to 67.2(b), the email sent to the judge's proposed orders account must list the following items in the email subject line, separated by an underscore: (1) the case number, (2) judge's initials, (3) the docket number of the motion filed electronically, which is the subject of the proposed order, and (4) a description. (Example: 1:13-cv-0000_BLW_Dkt_10_Personal Information for Motion to Withdraw Monies.wpd)

RELATED AUTHORITY

Fed. R. Civ. P. 67
28 U.S.C. §§ 2041, 2042

MAGISTRATE JUDGE RULES

(a) **Authority of United States Magistrate Judges.**

(1) Authorized Magistrate Judge Duties. All United States magistrate judges of this Court are authorized to perform the duties prescribed by 28 U.S.C. § 636(a), (b), (c), and (g).

(2) Prisoner Cases Under 28 U.S.C. § 2254. Upon referral by a district judge a magistrate judge may perform any or all of the duties imposed upon a district judge by the rules governing proceedings in the United States District Courts under § 2254 of Title 28, United States Code. In so doing, the magistrate judge may issue any preliminary orders and conduct any necessary evidentiary hearing or other appropriate proceedings and must submit to a district judge a report containing proposed findings of fact and recommendations for disposition of the petition by the district judge except in cases where the death penalty has been imposed; in which case, the district judge will conduct any evidentiary hearing or other appropriate proceeding. Any order disposing of the motion may only be made by a district judge.

(3) Prisoner Cases Under 42 U.S.C. § 1983. Upon referral by a district judge a magistrate judge may issue any preliminary orders and conduct any necessary evidentiary hearing or other appropriate proceedings and must submit to a district judge a report containing proposed findings of fact and recommendations for the disposition of petitions or complaints filed by prisoners challenging the conditions of their confinement.

(4) Other Authorized Duties. A magistrate judge is also authorized to:

(A) Conduct any pretrial matters, such as pretrial conferences, settlement conferences, omnibus hearings, and related proceedings in civil cases upon the referral by a district judge;

(B) Conduct voir dire and select petit juries in civil cases assigned to a district judge, with the consent of the parties; and

(C) Accept petit jury verdicts in civil cases at the request of a district judge.

(b) **Objections to Magistrate Judge's Orders, Reports, and Recommendations.**

(1) Nondispositive Matters - 28 U.S.C. § 636(b)(1)(A). Pursuant to Fed. R. Civ. P. 72(a), a party may serve and file any objections, not to exceed twenty (20) pages, to a magistrate judge's order within fourteen (14) days after being served with a copy of the order, unless the magistrate judge or district judge sets a different time period. A party may serve and file a response, not to exceed twenty (20) pages, to another party's objections within fourteen (14) days after being served with a copy thereof. The district judge may also consider sua sponte any order by a magistrate judge found to be clearly erroneous or contrary to law.

(2) Dispositive Matters - 28 U.S.C. § 636(b)(1)(B). When a pretrial matter dispositive of a claim or defense of a party, a post-trial motion for attorney fees, or a prisoner petition is referred to a magistrate judge without consent of the parties pursuant to 28 U.S.C. § 636(b)(1)(B), the magistrate judge will conduct such proceedings as required. The magistrate judge will enter a report and recommendation for disposition of the matter, including proposed findings of fact when appropriate. Pursuant to Fed. R. Civ. P. 72(b), a party objecting to the recommended disposition of the matter must serve and file specific, written objections, not to exceed twenty (20) pages, to the proposed findings and recommendations within fourteen (14) days after being served with a copy of the magistrate judge's report and recommendation, unless the magistrate or district judge sets a different time period. A party may serve and file a response, not to exceed twenty (20) pages, to another party's objections within fourteen (14) days after being served with a copy thereof. The district judge to whom the case is assigned will make a de novo determination of any portion of the magistrate judge's recommended disposition to which specific objection has been made. The district judge may also consider sua sponte any portion of the proposed disposition. The district judge may accept, reject, or modify the recommended disposition, receive further evidence, or return the matter to the magistrate judge with instructions.

RELATED AUTHORITY

Fed. R. Civ. P. 72

ASSIGNMENT OF CIVIL CASES TO A MAGISTRATE JUDGE UPON THE CONSENT OF THE PARTIES

A civil case may be conditionally assigned to a magistrate judge or reassigned from a district judge to a magistrate judge under 28 U.S.C. § 636(c) for any and all proceedings in a jury or non-jury matter, including pretrial, trial, and post-trial motions, and ordering the entry of judgment. Before a magistrate judge can exercise jurisdiction over a civil case, all parties must sign a written consent to proceed before the magistrate judge.

(a) **Notice**. The Clerk of Court will notify the parties in all civil cases that they may consent to have a Magistrate Judge conduct all proceedings in the case and order the entry of a final judgment, as follows:

1) Habeas corpus cases: At the time the action is conditionally filed, the Clerk of Court will send a Notice of Assignment to a United States Magistrate Judge and Declination of Consent Form ("Notice of Assignment") to the petitioner and to the Idaho Attorney General, or such other attorney as may be appropriate, on behalf of all named respondents.

2) Non-habeas corpus prisoner and in forma pauperis civil cases: The Clerk of Court will send either a Notice of Assignment or a Notice of Availability of a United States Magistrate Judge and Consent Form ("Notice of Availability") to each party remaining after the screening order is completed and a presiding judge is designated for the case.

3) All other civil cases: The Clerk of Court will send either a Notice of Assignment or a Notice of Availability to each party.

4) If parties are added to the case after all existing parites have consented to proceed before a Magistrate Judge, the Clerk of Courtwill send a Notice of Assignment to each new party upon appearance of the party added.

(b) **Return of Consent and Declination of Consent Forms, Voluntariness, and Confidentiality**.

1) Consent Forms: When a case is initially assigned to a District Judge, any party, or any attorney on behalf of a party, consenting to proceed before a United States Magistrate Judge must return the signed consent form to the Clerk of Court by e-mailing it in .pdf format to the following address: consents@id.uscourts.gov (or by mail if a pro se litigant does not have electronic mail capabilities). The Clerk of Court will keep custody of all consent forms under seal until it is determined whether all parties have consented to proceed before a Magistrate Judge. If not all parties consent, any consent forms emailed to the Clerk of Court will remain sealed, and the case will remain with a District Judge. If all parties consent, the Clerk of Court will file and docket the consent forms, and the case will be reassigned to a Magistrate Judge. Parties are free to withhold their consent without adverse consequences, and the Clerk of Court will take reasonable steps to ensure confidentiality of consents.

2) Declination of Consent Forms: When a case is initially assigned to a Magistrate Judge, each party will be deemed to have knowingly and voluntarily consented to proceed before the assigned Magistrate Judge **UNLESS** a party emailed a declination of consent form to the Clerk of Court. Any party, or any attorney on behalf of a party, declining consent to proceed before a United States Magistrate Judge must return the signed declination of consent form to the Clerk of Court by e-mailing it in .pdf format to the following address: consents@id.uscourts.gov (or by mail if a pro se litigant does not have electronic mail capabilities). If any party emails a declination of consent form to the Clerk of Court, the form will remain sealed, and the Clerk of Court will reassign the case to a District Judge. Parties are free to email a declination of consent form without adverse consequences, and the Clerk of Court will take reasonable steps to ensure confidentiality.

RELATED AUTHORITY

General Order No. 457
General Order No. 422
General Order No. 324
28 U.S.C. § 636

HOURS OF THE COURT

The standard business hours for the intake counters of the office of the Clerk of Court are from 9 a.m. to 4 p.m. local time every day except Saturdays, Sundays, legal holidays and other days so ordered by the Court.

RELATED AUTHORITY

Fed. R. Civ. P. 77(c), Dist. Idaho Loc. Civ. R. 5.1(g)

Advisory Committee Note

Clerk's office staff is available for telephone assistance between the hours of 8:00 a.m. and 5:00 p.m., local time, to handle any emergency matters as needed.

SESSIONS OF THE COURT

(a) This Court will transact judicial business in Boise, Coeur d'Alene, and Pocatello, Idaho, on all business days. The judges will preside over hearings and trials in these locations as the judicial workload may warrant.

(b) Any judge of this Court may, in the interest of justice or to further the efficient performance of the business of the Court, conduct proceedings at a special session at any time, anywhere in the District, on request of a party or otherwise.

RELATED AUTHORITY

Fed. R. Civ. P. 77
28 U.S.C. § 138-139, 141

UNITED STATES COURT LIBRARY

The Ninth Circuit law library is located on the fourth floor of the Federal Building and United States Courthouse in Boise, Idaho. The library is for the primary use of judges and personnel of the Federal Court.

The library is operated in accordance with such rules, regulations, and policies as the Court may from time to time adopt. The Public Access Policy for the library is available at the library.

RELATED AUTHORITY

United States Court Library, Boise, Idaho
Public Access Policy

District Local Rule Civ 77.4 (Civil) Back to Top

EX PARTE COMMUNICATION WITH JUDGES

Unless the opposing counsel or party in pro se is present, attorneys or parties to any action or proceeding should refrain from writing letters to the judge, or otherwise communicating with the judge, concerning the action or proceeding. All matters to be called to a judge's attention concerning any action or proceeding should be formally submitted as hereinafter provided.

RELATED AUTHORITY

None

CUSTODY OF FILES AND EXHIBITS

(a) After being admitted into evidence, exhibits of a documentary nature in any case pending or tried in this Court, including any such electronically stored information, shall be placed in the custody of the Clerk unless otherwise ordered by the Court. All other exhibits, models and material offered or admitted in evidence will be retained in the custody of the attorney or party producing the same at trial unless otherwise ordered by the Court.

(1) At the conclusion of the trial or hearing, every exhibit marked for identification or introduced in evidence, all depositions and transcripts, must be returned to the party who produced them.

(2) On request, a party or their attorney who has custody of any exhibits, has the responsibility to produce any and all such exhibits to this Court or the Court of Appeals; and must grant the reasonable request of any party to examine or reproduce such for use in the proceeding. This obligation shall continue until any appeal has been finally resolved or time for filing a notice of appeal or petition for writ of certiorari has expired.

(b) All exhibits received in evidence in a criminal case that are in the nature of narcotic drugs, legal or counterfeit money, firearms or contraband of any kind, must be retained by the United States Attorney or his or her designee pending disposition of the case and for any appeal period thereafter.

RELATED AUTHORITY

None

REMOVAL ACTIONS - STATE COURT RECORDS

(a) This rule applies to civil actions removed to the United States District Court for the District of Idaho from the state courts and governs procedure after removal. The removing party must file:

(1) A copy of the entire state court record and the Register of Actions must be provided at the time of filing the notice of removal, and

(2) A Civil Cover Sheet with the Notice of Removal. Attorneys are required to complete a civil cover sheet when a notice of removal is filed in the District of Idaho. The form is available on the Court's website. This form is used by the Clerk of Court to identify the status of all parties and attorneys. See Dist. Idaho Loc. Civ. R. 7.1, Motion Practice and Dist. Idaho. Loc. Civ. R. 5.2(d).

(b) **Motions in Cases Removed from State Court.** The filing date of the Notice of Removal will be considered the filing date of all pending motions previously filed in the state court action, unless otherwise ordered by the Court. If a response and/or reply have also been filed in the state court action prior to the filing of the notice of removal, no further response or reply pleadings will be accepted. If a response to the motion has not been filed in the state court action, the response deadline will be twenty-one (21) days after service of the notice of removal. If a response to the motion was filed in the state court action but a reply to the response has not been filed in the state court action, the reply deadline will be fourteen (14) days after the filing of the notice of removal.

RELATED AUTHORITY

Fed. R. Civ. P. 81(c)

COURTHOUSE ACCESS

(a) **Publicity.** Courthouse supporting personnel, including, among others, clerks and deputies, law clerks, messengers, and court reporters, must not disclose to any person information relating to any pending criminal or civil proceeding that is not part of the public records of the Court without specific authorization of the Court, nor may any such personnel discuss the merits or personalities involved in any such proceeding with any members of the public. Deputies and employees of the United States Marshal's Service coming into possession of confidential information obtained from the Court must not disclose such information unless necessary for official law enforcement purposes.

(b) **Confidentiality.** All courthouse support personnel are specifically prohibited from divulging information concerning arguments and hearings held in chambers or otherwise outside the presence of the public.

(c) **Conduct of Proceedings in a Widely Publicized or Sensational Case.**

(1) In a widely publicized or sensational case likely to receive massive publicity, the Court, on its own motion, or on motion of either party, may issue a special order governing such matters as extrajudicial statements by lawyers, parties, witnesses, jurors, and Court officials likely to interfere with the rights of the accused to a fair trial by an impartial jury, the seating and conduct in the courtroom of spectators and news media representatives, the management and sequestration of jurors and witnesses, and any other matter which the Court may deem appropriate for inclusion in such an order.

(2) Nothing in this rule or in any other criminal rule of this Court is intended to restrict the media's right to full pretrial coverage of news pursuant to the First Amendment to the United States Constitution.

(d) **Broadcasting, Recording, and Photographing Proceedings.**

(1) Except as provided, all forms, means, and manner of taking photographs, tape recordings, videotaping, broadcasting, or televising are prohibited in a United States courtroom or its environs during the course of, or in connection with, any judicial proceedings whether the Court is actually in session or not. This rule does not prohibit recordings by a court reporter or staff electronic recorder. No court reporter, staff electronic recorder, or any other person may use or permit to be used any part of any recording of a court proceeding on or in connection with any radio, videotape or television broadcast of any kind.

(2) A judge may, however, permit (A) the use of electronic or photographic means for the presentation of evidence or the perpetuation of a record, and (B) the broadcasting, televising, recording, or photographing of investiture, ceremonial, naturalization proceedings, or for other purposes.

(3) Upon request, the presiding judge may, in his or her discretion, allow remote audio access to any member of the public in any non-trial proceeding that does not involve witness testimony. Those granted remote access are subject to the recording and broadcasting limitations outlined in subsection (1).

(e) **Wireless Portable Devices.** Because of the increased reliance on wireless devices, portable wireless communication devices such as cell phones, smart phones (including Androids, BlackBerrys and iPhones), PDAs and laptops (including iPads) such devices will be allowed in the courtroom so long as they do not either disrupt Court proceedings or pose a security threat. Cell phone calls cannot be either made from or answered in the courtroom. All such devices must be either turned off or set to the silent or vibrate mode. However, if a particular device is incompatible with existing technological architecture in a certain courtroom, (e.g. causes a microphone to buzz when an incoming call is received, despite being in the silent or vibrate mode), the owner will be asked to remove it from the courtroom or take some other action. Using any wireless device for surreptitious communication or unauthorized filming, photographing, recording or transmitting of either court proceedings, images of jurors, witnesses or undercover agents is strictly prohibited. The foregoing restrictions also apply to all jurors. Furthermore, jurors may not use cell phones during deliberations nor use wireless devices with internet access to research issues or access court files during the course of the trial.

(f) For purposes of this rule, *environs* means:

(1) In Boise, Idaho, the fifth and sixth floor of the Federal Building and United States Courthouse located at 550 West Fort Street, including the corridor area adjacent to the courtroom doors;

(2) In Pocatello, Idaho, that portion of the first and second floors of the Federal Building and Courthouse at 804 East Sherman Street assigned for Court use, including the corridor area adjacent to the courtroom doors; and

(3) In Coeur d'Alene, Idaho, the first and third floors of the Federal Building and Courthouse located at 6450 N. Mineral Dr. assigned for court use, including the corridor adjacent to the courtroom doors.

RELATED AUTHORITY

45 F.R.D. 391 (1969)
51 F.R.D. 135 (1971)
87 F.R.D. 519 (1980)
Judicial Conference of the United States Courts (September 2023) Remote Access Policy
Judicial Council of the Ninth Circuit (March 2024) Policy on Remote Public Access

COURTROOM AND COURTHOUSE DECORUM

Position of Counsel. Counsel for the respective parties must be seated in accordance with instructions of the Court bailiff. When examining a witness or addressing the Court, counsel must remain at the counsel table or the lectern, if one is available, except when permission is granted by the Court to approach the bench, the Clerk's desk, or a witness. All papers and exhibits must be sent from counsel table to the Court, courtroom clerk, or witness by and through the bailiff unless permission is otherwise granted.

RELATED AUTHORITY

None

SECURITY IN THE COURTHOUSE

The Court, or any judge, may from time to time make such orders or impose such requirements as may be reasonably necessary to assure the security of the Court and of all persons in attendance. To the extent deemed necessary, the Court or judge may coordinate any orders relating to the security of the Court and public with the U.S. Marshal's Service.

RELATED AUTHORITY

None

BAR ADMISSION

a) **Admission to the Bar of this Court.** Admission to and continuing membership in the bar of this Court is limited to attorneys of good moral character who are active members in good standing of the Idaho State Bar. Each applicant for admission must present to the Clerk a written petition for admission stating the applicant's residence and office addresses and by what courts he or she has been admitted to practice and the respective dates of admission to those courts. Upon qualification, the applicant may be admitted upon written or oral motion as determined by the Court. Before any certificate of admission shall issue, the applicant must sign the prescribed oath.

b) **Practice in this Court.** Except as herein otherwise provided, only members of the bar of this Court may practice in this Court. Only a member of the bar of this Court may appear for a party, sign stipulations, or receive payment or enter satisfactions of judgment, decree, or order.

c) **Attorneys for the United States and Federal Defender Organizations.** An attorney for the United States or for a Federal Defender Organization, who is a member in good standing of and eligible to practice before the bar of any United States Court or of the highest court of any state or of any territory or of any insular possession of the United States, and who is of good moral character, may practice in this Court in any matter in which the attorney is employed or retained by the United States or its agencies and is representing the United States or any of its officers or agencies or in which the attorney is part of a federal defender organization and is appointed by the Court to represent a criminal defendant. Dist. Idaho Loc. Crim. R. 44.1). Attorneys so permitted to practice in this Court are subject to the jurisdiction of the Court with respect to their conduct to the same extent as members of the bar of this Court.

d) **Appearance by Entities Other Than an Individual.** Whenever an entity other than an individual desires or is required to make an appearance in this Court, the appearance shall be made only by an attorney of the bar of this Court or an attorney permitted to practice under these rules.

e) **Pro Hac Vice/Local Counsel.** An attorney not eligible for admission under Dist. Idaho Loc. Civ. R. 83.4(a) hereof, but who is a member in good standing of and eligible to practice before the bar of any United States Court or of the highest court of any state or of any territory or insular possession of the United States, who is of good moral character, and who has been retained to appear in this Court, may, upon written application and in the discretion of the Court, be permitted to appear and participate in a particular case, and no certificate of admission must be issued by the Clerk.

The attorney requesting to appear pro hac vice must first (1) designate an active member of the bar of this Court as Local Counsel with the authority to act as attorney of record for all purposes, and with whom the Court and opposing counsel may readily communicate regarding the conduct of the case, and (2) file with such designation the address, telephone number, and written consent of such designee. Designated local counsel shall be responsible both for filing the pro hac vice application through ECF and for payment of the prescribed fee. The pro hac vice application must be presented to the Clerk and must state under penalty of perjury (1) the attorney's residence and office addresses, (2) by what court(s) the attorney has been admitted to practice and the date(s) of admission, (3) that the attorney is in good standing and eligible to practice in said court(s), and (4) that the attorney is not currently suspended or disbarred in any other court(s). Upon the electronic filing of the pro hac vice application and payment of fees by designated local counsel, and granting of the application by the Court, out-of-state counsel shall immediately register for ECF.

Absent Court approval, an attorney who has been admitted pro hac vice for a particular case and received an ECF login and password, may not use these in a subsequent, unrelated case.

All documents filed with the Clerk of Court must contain the names, addresses, and original signatures as prescribed in the ECF Procedures of the attorney appearing pro hac vice and associated local counsel.

The designated local counsel must personally appear with the attorney on all matters heard and tried before this Court unless such presence is excused by the Court.

f) **Non-Appropriated Fund.**

1) Attorneys admitted to the bar of this Court under the conditions prescribed in Dist. Idaho Loc. Civ. R. 83.4 must be required to pay to the Clerk of Court an admission fee in accordance with the General Orders of this Court.

2) Attorneys not admitted to the bar of this Court who, upon the filing of a verified petition for permission to practice in an individual case, are appearing under the conditions prescribed in Dist. Idaho Loc. Civ. R. 83.4(e), must be required to pay a fee in accordance with the General Orders of this Court.

3) Monies deposited into the Non-Appropriated Fund must be used for purposes which inure to the benefit of the bench and the bar of this Court in the administration of justice in the District of Idaho.

4) Attorneys for the United States, and Federal Public Defender, need not pay the admission fees specified above.

g) **Legal Interns.** At the discretion of the presiding judge, a legal intern who possesses a limited license issued by the Idaho State Bar, may appear before the District Court in the presence of a supervising attorney, who shall be an attorney licensed to practice before this court.

h) **Notice of Change of Status.** An attorney who is a member of the bar of this Court or who has been permitted to practice in this Court under Dist. Idaho Loc. Civ. R. 83.4 hereof must promptly notify the Court of any change in his or her status in another jurisdiction which would make him or her ineligible for membership in the bar of this Court under Local Rule 83.4. In the event the attorney is no longer eligible to practice in another jurisdiction by reason of his or her suspension for nonpayment of fees or enrollment as an inactive member, he or she will forthwith be suspended from practice before this Court without any order of Court and until he or she becomes eligible to practice in such other jurisdiction.

RELATED AUTHORITY

General Order No. 368

Electronic Case Filing Procedures

ATTORNEY DISCIPLINE

(a) **Standard of Professional Conduct.** All members of the bar of the District Court and the Bankruptcy Court for the District of Idaho (hereafter the "Court") and all attorneys permitted to practice in this Court must familiarize themselves with and comply with the Idaho Rules of Professional Conduct of the Idaho State Bar and decisions of any court interpreting such rules. These provisions are adopted as the standards of professional conduct for this Court but must not be interpreted to be exhaustive of the standards of professional conduct. No attorney permitted to practice before this court will engage in any conduct which degrades or impugns the integrity of the Court or in any manner interferes with the administration of justice therein.

(b) **Discipline.**

(1) **General authority of the Court, and conduct subject to discipline.** This Court may impose discipline on any attorney practicing before this Court, whether or not a member of the bar of this Court, who engages in conduct violating the Idaho Rules of Professional Conduct, or who fails to comply with rules or orders of this Court. The discipline may consist of disbarment from practice before this Court, suspension, reprimand, or any other action that the Court deems appropriate and just. In the event any attorney engages in conduct which may warrant discipline or other sanctions, the Court may, in addition to initiating proceedings for contempt under Title 18, United States Code, and Federal Rule of Criminal Procedure 42, or imposing other appropriate sanctions pursuant to the Court's inherent powers and/or the Federal Rules of Civil, Bankruptcy or Criminal Procedure, initiate a disciplinary process under section (b)(2) - (4) of this rule, and/or refer the matter under section (b)(8) of this rule.

(2) **Conviction of felony or serious crime.** Any attorney admitted to practice in this Court who is convicted of a felony or other "serious crime" as defined in Idaho Bar Commission Rule 501(p), in any court of the United States, of the District of Columbia, or of any state, territory, commonwealth, or possession of the United States, has the duty and obligation to report such conviction to this Court within fourteen (14) days of its entry. Upon receiving notice of an attorney's conviction of a felony or other serious crime, whether received from the attorney, another court or its clerk, or otherwise, such attorney will be immediately suspended from practice before this Court, whether the conviction resulted from a plea of guilty or *nolo contendere*, or from a verdict after trial, or otherwise.

(A) **Pending appeal.** The Court will issue an order to show cause at the time of suspension directing the suspended attorney to demonstrate within thirty (30) days from the date of such order why the attorney should be reinstated to practice before the Court during the pendency of any appeal.

(B) **Finality of conviction, and disbarment.** Upon the conviction becoming final and the Court being informed thereof, the Court will issue an order to show cause directing the suspended attorney to demonstrate within thirty (30) days from the date of such order why the suspension under section (b)(2) of this rule will not be made permanent and why the Court should not enter an order of disbarment.

(3) **Reciprocal discipline (disbarment, suspension or other discipline by any other court).** Upon the receipt by this Court of a certified copy of a judgment or order showing that any attorney admitted to practice before this Court has been suspended, disbarred or otherwise disciplined by any other court of the United States or the District of Columbia, or of any state, territory, commonwealth or possession of the United States (hereafter the "supervising court"), or has resigned in lieu of discipline, this Court will review the judgment and order and determine whether similar discipline should be imposed by this Court.

(A) **Order imposing discipline and allowing response.** If the Court decides that similar discipline is warranted, an order of discipline and conjoined order to show cause will issue advising the disciplined attorney that (1) he or she is immediately subject to the same discipline as imposed by the supervising court and, if such discipline includes suspension or disbarment, may only be reinstated to practice before this Court as hereinafter provided, and (2) if the disciplined attorney contends that meritorious reasons exist why the disciplined attorney should not be subject to the same discipline by this Court as imposed by the supervising court, the disciplined attorney must file within thirty (30) days of this Court's order, a petition to set aside the discipline and/or be reinstated to practice in this Court. The petition must clearly demonstrate or this Court otherwise find: (i) the procedure in the supervising court was so lacking in notice or opportunity to be heard as to constitute a deprivation of due process; (ii) there was such an absence of proof establishing misconduct that this Court would not accept as final the conclusions reached by the supervising court; (iii) the imposition of the disciplinary action stated in the order of the supervising court would otherwise result in a grave injustice; or (iv) the misconduct warrants discipline substantially different from that stated in the order of the supervising court.

(B) **Wind-up.** Unless otherwise ordered, the disciplined attorney will have fourteen (14) days after the date of the Order described in this section to wind-up and complete on behalf of any client, all matters pending on the date of the entry of such order.

(4) **Original (non-reciprocal) disciplinary proceedings.**

(A) **Initiation of proceedings.** Whenever a district, magistrate or bankruptcy judge of this district believes that conduct of an attorney may warrant disbarment, suspension, reprimand or other discipline by this Court, other than those matters addressed in sections (b)(1), (2) and (3) of this rule, such judge may issue a written report and recommendation for the initiation of disciplinary proceedings (the "recommendation"). The chief district judge, or another district judge if the chief district judge is the judge recommending such action (hereafter the "reviewing judge"), will review the recommendation to determine if reasonable grounds exist for the initiation of disciplinary proceedings. If the reviewing judge determines that disciplinary proceedings should be initiated, the reviewing judge will issue an order to show cause under this rule that identifies the basis for and nature of possible discipline.

(B) **Response.** An attorney against whom an order to show cause is issued under this section will have thirty (30) days from the date of the order in which to file a response. The attorney may include in the response (i) a request to submit the matter on the recommendation, affidavits, briefs, and the record, or (ii) for a hearing, whether in-person, telephonic, or by video. The failure to include a request for a hearing will be deemed a waiver of any right to a hearing. The failure to file a timely response may result in the imposition of discipline by the Court without further notice.

(C) **Hearing on disciplinary charges.** If requested by the attorney, a hearing on the disciplinary charges will be conducted by the reviewing judge. If a hearing is not requested, the matter will be determined by the reviewing judge on the record submitted to him or her. At any hearing under this rule, the attorney may be represented by counsel who must file a notice of appearance with the reviewing judge and with any attorney appointed by the Court to prosecute the matter under section (b)(4)(D) of this rule.

(D) **Appointment of counsel to prosecute charges.** In appropriate cases, the reviewing judge may appoint an attorney to prosecute charges of misconduct and will provide notice of that appointment to the attorney and his counsel, if any. The Court may solicit recommendations from the Lawyer Representatives of the District of Idaho as to an appropriate appointment. Actual out-of-pocket costs incurred by the attorney prosecuting the charges will be reimbursed from the Non-Appropriated Fund after review and approval by the Board of Judges.

(E) **Determination, and entry of order.** Upon the completion of hearing, if any, and its review of the record, the reviewing judge will prepare a proposed determination which will be served on the attorney, and his or her counsel if any. The attorney will have ten (10) days from the service of the proposed determination within which to file a reply. If the attorney files a reply, the proposed determination, reply and any record developed will be presented to a randomly drawn three judge panel of the district, magistrate and bankruptcy judges of this Court, other than the initially complaining judge and the reviewing judge. In its discretion, the panel may call for further submissions or hearing. The final order in a disciplinary proceeding where such a reply has been filed by the attorney, will be by the panel. In the absence of a reply, the proposed determination will be entered as the final order.

(5) **Reinstatement.** To be readmitted, a suspended or disbarred attorney must file a petition for reinstatement with the Clerk of this Court. The petition will contain a concise statement of the circumstances of the disciplinary proceedings, the discipline imposed by the Court, and the grounds that justify reinstatement of the attorney. If this Court has imposed reciprocal discipline under section (b)(3) of this rule, and if the attorney has been readmitted by the supervising court or the discipline imposed by that supervising court has been modified or satisfied, the petition will explain the situation with specificity, including description of any restrictions or conditions imposed on readmission by that supervising court. The petition will be referred to the chief district judge, or another district judge at the chief district judge's discretion, who will file a proposed determination. The provisions of section (b)(4)(E) of this rule will govern determination and entry of decision on the petition for reinstatement.

(6) **Confidentiality.** All proceedings under this rule will be public, except upon an order entered upon a showing of good cause that sealing all or part of the record is appropriate. The Court may make such determination and enter such an order *sua sponte*.

(7) **Non-limiting effect of rule.** Nothing in this rule will limit the power of an individual judge to impose sanctions as authorized under applicable law including the Federal Rules of Civil, Bankruptcy or Criminal Procedure. Nothing in this rule is intended to limit the inherent authority of any judge of this Court to suspend an attorney from practicing before that judge on a case by case basis, after appropriate notice and an opportunity to be heard.

(8) **Referral to other courts and entities.** This rule does not restrict the Court or any judge thereof from referring an attorney or a matter to any other court or to any bar association for investigation and/or disciplinary action.

Related Authority and Notes

Idaho Bar Commission Rule 512(a) requires notification of conviction as is provided in section (b)(2) of this rule.
Idaho Bar Commission Rule 516(a)(2) provides a period similar to that set forth in section (b)(3)(B) of this rule.

APPEARANCE, SUBSTITUTION, AND WITHDRAWAL OF ATTORNEYS

(a) **Appearances.**

(1) An attorney's signature to a pleading filed with the Court shall constitute an appearance by the attorney who signs it. Otherwise, an attorney who wishes to appear for a party or participate in any manner in any action must file a notice of appearance, containing the information required for pleadings as set forth in Rule 5.2. Failure to file a separate notice of appearance may result in an attorney not receiving copies of orders issued by the Court.

(2) Whenever a party has appeared through an attorney, the party may not thereafter appear or act in his or her own behalf in the case or take any step therein unless an order of substitution must first have been made by the Court, after notice to the opposing party and his or her attorney; provided, that the Court may in its discretion hear a party in open court, notwithstanding the fact that the party has appeared or is represented by an attorney.

(b) **Substitutions.**

(1) When an attorney of record who is the sole representative for any person ceases to act for a party, such party must appear in person or appoint another attorney to appear on his behalf by filing a "Notice of Substitution of Attorney." Said notice of substitution must be signed by the party, the attorney ceasing to act, and the newly appointed attorney or by a written designation filed in the cause and served upon the attorney ceasing to act unless said attorney is deceased, in which event the designation of the new attorney must so state. Until such substitution is filed with the Court, the authority of the attorney of record must continue for all proper purposes. The original notice of substitution, containing all signatures, shall be maintained by the filing party pursuant to Dist. Idaho Loc. R. 5.1(e).

(2) When an attorney of record who is the sole representative ceases to act for a party because the attorney is no longer with the same law firm and another attorney from the same law firm is substituted, a "Notice of Substitution of Attorney Within the Firm" and proposed order must be filed with the Clerk of Court. The "Notice of Substitution of Attorney Within the Firm" must be signed by the attorney ceasing to act for the party and the newly appointed attorney from the same firm. Until such substitution is filed with the Court, the authority of the attorney of record will continue for all proper purposes.

(c) **Withdrawal.**

(1) No attorney of record who is the sole representative for a party may withdraw from representing that party without leave of the Court. Before an attorney is to be granted leave to withdraw, the attorney must present to the Court a proposed order permitting the attorney to withdraw and directing the client to appoint another attorney to appear, or to appear in person by filing a notice with the Court stating how the party will be represented. After the Court has entered such order, the withdrawing attorney must forthwith and with due diligence serve all other parties.

(2) The order shall provide that the withdrawing attorney must continue to represent the client until proof of service of the withdrawal order on the client has been filed with the Court. The client will be allowed twenty-one (21) days after the filing of proof of service by the attorney(s) to advise the Court in writing in what manner the client will be represented.

If the said party fails to appear in the action, either in person or through a newly appointed attorney within such twenty-one (21) day period, such failure will be sufficient grounds for the entry of a default against such party or dismissal of the action of such party with prejudice and without further notice, which shall be stated in the order of the Court.

(3) If the party represented by the withdrawing attorney is a corporation, or other entity, the order must advise the entity that it cannot appear without being represented by an attorney in accordance with Dist. Idaho Loc. Civ. R. 83.4(d).

(4) Upon entry of the order and the filing of proof of service on the client, no further proceedings can be had in the action which will affect the right of the party represented by the withdrawing attorney for a period of twenty-one (21) days.

(d) **Notice of Change of Address.** Any attorney or pro se litigant who has been permitted to appear and participate in an action before this Court must advise the Court and other counsel of record, in writing, if that attorney or pro se litigant has a change in name, firm, firm name, office mailing address, or /other mailing address by filing a document entitled "Notice of Change of Address" in each case in which he or she has made an appearance.

The Clerk's Office will assume record keeping responsibility only for address changes made in accordance with this rule.

RELATED AUTHORITY

None

District Local Rule Civ 83.7 (Civil) Back to Top

PERSONS APPEARING WITHOUT AN ATTORNEY - PRO SE

Persons Appearing Without an Attorney--*In Propria Persona.* Any person who is representing himself or herself without an attorney must appear personally for such purpose and may not delegate that duty to any other person. While such person may seek outside assistance in preparing Court documents for filing, the person is expected to personally participate in all aspects of the litigation, including Court appearances. Persons appearing without attorneys are required to become familiar with and comply with all Local Rules of this District, as well as the Federal Rules of Civil and /or Criminal Procedure. In exceptional circumstances, the Court may modify these provisions to serve the ends of justice.

FAIRNESS AND CIVILITY

All pretrial and trial proceedings in the United States District and Bankruptcy Courts for the District of Idaho, must be free from prejudice and bias towards another on the basis of gender, race, ethnicity, disability, age or sexual orientation. Fair and equal treatment must be accorded all courtroom participants, whether judges, attorneys, witnesses, litigants, jurors, or court personnel. The duty to be respectful of others includes the responsibility to avoid comment or behavior that can reasonably be interpreted as manifesting prejudice or bias toward another.

Civility is the responsibility of every lawyer, judge, and litigant in the federal system. While lawyers have an obligation to represent clients zealously, incivility to counsel, adverse parties, or other participants in the legal process undermines the administration of justice and diminishes respect for both the legal process and our system of justice.

The bar, litigants, and judiciary, in partnership with each other, have a responsibility to promote civility in the practice of law and the administration of justice. The fundamental principles of civility which will be followed in the United States District and Bankruptcy Courts for the District of Idaho, both in the written and spoken word, include the following:

1) Treating each other in a civil, professional, respectful, and courteous manner at all times.
2) Not engaging in offensive conduct directed towards others or the legal process.
3) Not bringing the profession in to disrepute by making unfounded accusations of impropriety.
4) Making good faith efforts to resolve by agreement any disputes.
5) Complying with the discovery rules in a timely and courteous manner.
6) Reporting acts of bias or incivility to the Clerk of Court.

The Clerk of the Court will then determine the appropriate judicial officer with whom to discuss the matter.

RELATED AUTHORITY

None